



CHAPTER 1.

An Act for conferring further powers upon the Great Western Railway Company and for other purposes. A.D. 1924.
[1st August 1924.]

WHEREAS it is expedient that the Great Western Railway Company (in this Act called "the Company") should be empowered to make and maintain the railways and the deviations and widening of railways and other works and to exercise the powers by this Act respectively authorised and conferred upon them and to acquire for the purposes of this Act and for the general purposes of their undertaking and works connected therewith and for providing increased accommodation certain lands houses and buildings in this Act described and that the acquisition of other lands already acquired and the deviation of certain railways already completed by the Company should be sanctioned and confirmed :

And whereas plans and sections showing the lines and levels of the railways and the deviations and widening of railways and other works by this Act authorised or confirmed by this Act and plans showing the lands by this Act authorised to be acquired by compulsion under this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks of the peace for the several counties within which such railways and deviations and widening of railways and other works will

A.D. 1924. — be or have been constructed and such lands are situated and are hereinafter respectively referred to as the deposited plans sections and books of reference :

And whereas it is expedient that the time now limited for the compulsory purchase of certain lands and for the completion of certain railways authorised to be acquired or constructed under various Acts relating to the Company should be extended as provided by this Act :

And whereas it is expedient that some of the provisions of the existing Acts of the Company should be amended or repealed :

And whereas it is expedient that the Company should be authorised to apply their funds for the purposes of this Act and for the general purposes of their undertaking and that the other powers in this Act mentioned should be conferred :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the *Great Western Railway (Additional Powers) Act 1924*.

Incorporation of general Acts.

2. The following Acts and Parts of an Act so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts :

Provided always that any question of disputed compensation under this Act or any Act incorporated therewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party :

The Railways Clauses Consolidation Act 1845 :

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Part I. (relating to the construction of a railway)
and Part II. (relating to extension of time)
of the Railways Clauses Act 1863.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpreta-
tion.

The expression "the railway" or "the railways" means the new railways by this Act authorised.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority or water board and shall be construed as if "local authority" and "water board" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority or water board to which their revenues in respect of water or gas (as the case may be) are appropriated.

Protection
of gas and
water mains
of local
authorities.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections relating thereto the railways and the deviations and widening of railways hereinafter described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company The new railways and the deviations and widening of railways hereinbefore referred to and authorised by this Act are :—

Power to
make new
railways
and works.

A railway (No. 2) 1 mile and 9·80 chains in length wholly in the county of Carnarvon commencing in the parish of Denio and borough of Pwllheli

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by a junction with the coast section of the Cambrian Railway of the Company near the termination of that railway at Pwllheli Station and terminating in the parish of Penrhos in the rural district of Lleyrn south of a point in the road leading from Pwllheli to Abersoch $9\frac{1}{2}$ chains or thereabouts south-west of the bridge carrying that road over the river Rhyd-hîr :

A railway (No. 3) 6 miles 4 furlongs and 0·30 chain in length wholly in the county of Carnarvon commencing in the parish of Penrhos in the rural district of Lleyrn at the termination of the said intended Railway No. 2 and terminating in the parish of Nevin in the rural district of Lleyrn in the field or enclosure numbered 704 on the 25-inch Ordnance map (edition 1918) of that parish :

A railway (No. 4) 4 miles 7 furlongs and 8·50 chains in length wholly in the county of Carnarvon commencing in the parish of Penrhos in the rural district of Lleyrn at the termination of the said intended Railway No. 2 and terminating in the parish of Llangian in the rural district of Lleyrn in the field or enclosure numbered 716 on the 25-inch Ordnance map (edition 1918) of that parish :

A railway (No. 5) 3 furlongs and 5·35 chains in length wholly in the parish and city and county borough of Cardiff in the county of Glamorgan commencing by a junction with the Rhymney Railway of the Company at a point about $8\frac{1}{2}$ chains north of the bridge carrying that railway over the Roath branch of the Taff Vale Railway of the Company and terminating by a junction with the last-mentioned railway at a point about 28 chains south-east of the said bridge :

A railway (No. 6) 6·77 chains in length wholly in the parish of St. Austell Rural in the rural district of St. Austell in the county of Cornwall commencing by a junction with the Goonbarrow branch of the Cornwall Minerals Railway of the Company at or near the junction of that

railway with the Carbean branch of the said railway and terminating at a point about $1\frac{1}{2}$ chains south of the south-western end of the clay dry at or near the termination of the first-mentioned branch : A.D. 1924.
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A deviation 1 furlong and 7.65 chains in length wholly in the parish and city and county borough of Bristol in the county of Gloucester of the Canons Marsh Railway of the Company between the termination of that railway in Canons Road and a point about $17\frac{1}{2}$ chains south thereof :

A deviation and widening 1 mile 2 furlongs and 3.82 chains in length wholly in the parish and city and county borough of Cardiff in the county of Glamorgan of the Roath Dock Branch Railway of the Company commencing at a point about 52 chains south of the bridge carrying that railway over South Park Road and terminating at a point about 21 chains south-west of the bridge carrying the road leading to Pengam Farm over the South Wales Railway of the Company.

And the Company may abandon and discontinue the maintenance and use of so much of the said railways between the commencement and termination of the said deviation and deviation and widening hereinbefore described as may not be required for the purposes of the Company and may sell and dispose of or retain hold or appropriate the site and soil thereof for the purposes of the said intended deviation and deviation and widening and for the general purposes of the Company.

6. Railways Nos. 2 3 and 4 by this Act authorised shall for the purposes of tolls fares rates and charges be deemed to be part of the Cambrian Railway of the Company. Railway rates and charges.

Railway No. 5 by this Act authorised shall for the said purposes be deemed to be part of the Taff Vale Railway of the Company.

Railway No. 6 by this Act authorised shall for the said purposes be deemed to be part of the Cornwall Minerals Railway of the Company.

[Ch. 1.] *Great Western Railway [14 & 15 GEO. 5.]*
(Additional Powers) Act, 1924.

A.D. 1924. The deviation and widening of railways by this Act authorised shall for the said purposes be deemed to be part of the railways which are to be so deviated and widened.

Power to deviate. 7. In making the railways deviations and widening of railways and works in connection therewith by this Act authorised the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding 5 feet upwards and 5 feet downwards or to such further extent as they may find necessary or convenient and as may be sanctioned by the Minister of Transport.

Power to cross certain roads on level. 8. Subject to the provisions in the Railways Clauses Consolidation Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of the railways hereinafter mentioned by this Act authorised carry the same with a single line only whilst the railways shall respectively consist of a single line and afterwards with a double line only across and on the level of the roads next hereinafter mentioned (that is to say) :—

Number on deposited Plans.	Area.	Description of Road.
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RAILWAY No. 2.

9	Parish of Denio and borough of Pwllheli	Public.
38	Parish of Denio and borough of Pwllheli	Public.
50	Parish of Denio and borough of Pwllheli	Public.

RAILWAY No. 3.

62	Parish of Llannor	Public.
70	Parish of Bodvean	Public.

RAILWAY No. 6.

1	Parish of St. Austell Rural	Public.
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Inclination of roads. 9. In altering for the purposes of this Act the roads next hereinafter mentioned the Company may

make the same of any inclinations not steeper than A.D. 1924.
the inclinations hereinafter mentioned in connection
therewith respectively (that is to say) :—

Number on deposited Plans.	Area.	Description of Road.	Intended Inclination.
RAILWAY No. 2.			
38	Parish of Denio and borough of Pwllheli.	Public -	1 in 15 on both sides.
50	Parish of Denio and borough of Pwllheli.	Public -	1 in 15 on both sides.
RAILWAY No. 3.			
10	Parish of Penrhos -	Public -	1 in 15 on both sides.
35	Parish of Llannor -	Main -	1 in 15 on both sides.
62	Parish of Llannor -	Public -	1 in 15 on both sides.
14	Parish of Bodvean -	Public -	1 in 15 on both sides.
70	Parish of Bodvean -	Public -	1 in 15 on both sides.
91	Parish of Bodvean -	Public -	1 in 15 on both sides.
2	Parish of Nevin -	Public -	1 in 15 on both sides.
RAILWAY No. 4.			
139	Parish of Llanbedrog	Public -	1 in 15 on south-eastern side.
149	Parish of Llanbedrog	Public -	1 in 15 on south-eastern side.

10. The Company may make the arches of the Height and bridges for carrying the Railway No. 4 over the roads span of next hereinafter mentioned of any heights and spans bridges. not less than the heights and spans hereinafter mentioned in connection therewith (that is to say) :—

Number on deposited Plans.	Area.	Description of Road.	Span.	Height.
6	Parish of Llanbedrog	Public -	20 feet	15 feet.
39	Parish of Llanbedrog	Public -	15 feet	12 feet 6 inches.
139	Parish of Llanbedrog	Public -	12 feet	14 feet.
149	Parish of Llanbedrog	Public -	12 feet	14 feet.
30	Parish of Llangian -	Public -	20 feet	15 feet.

11. The Company may make the roadway over Width of the bridges by which the following roads will be carried certain over the railways hereinafter mentioned of such width roadways.

A.D. 1924. between the fences thereof as the Company think fit not being less than the respective widths hereinafter mentioned in connection therewith respectively (that is to say) :—

Number on deposited Plans.	Area.	Description of Roadway.	Width of Roadway.
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RAILWAY No. 3.

10	Parish of Penrhos -	Public -	20 feet.
35	Parish of Llannor -	Public -	20 feet.
14	Parish of Bodvean -	Public -	15 feet.
91	Parish of Bodvean -	Public -	20 feet.
2	Parish of Nevin -	Public -	20 feet.

RAILWAY No. 4.

34	Parish of Penrhos -	Public -	15 feet.
54	Parish of Llanbedrog	Public -	20 feet.

Power to divert roads and footpaths as shown on deposited plans.

12. The Company may divert the roads and footpaths referred to in the next following table in the manner shown upon the deposited plans and sections or as otherwise provided by this Act and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of each existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say) :—

Railway or other Work.	Area.	Number of Road or Footpath on deposited Plans.
Railway No. 3 -	Parish of Nevin -	3 and 5.
Railway No. 4 -	Parish of Llanbedrog -	69.
Railway No. 4 -	Parish of Llanbedrog -	139 and 149.

Power to stop up portion of road.

13. The Company may stop up so much of the road in the parish and borough of Pwllheli in the county of Carnarvon abutting on the eastern side of the property known as Y Maes and leading from Maes Square to the rocket apparatus house as may be within the boundary of the property acquired by the Company for the purposes of Railway No. 2 by this Act authorised and the footpath numbered on the deposited plans of Railway No. 4 by this Act authorised 136 in the parish of Llanbedrog

in the rural district of Lleyrn in the county of Carnarvon and thereupon all rights of way over the said portion of road and the said footpath shall be extinguished : A.D. 1924.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

14. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or deviations and widening of railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered so as to increase the gradient thereof. Company not liable to repair surface of road level of which is not permanently altered.

15. Notwithstanding anything in this Act contained the following provisions for the protection of the mayor aldermen and burgesses of the borough of Pwllheli (in this section referred to as "the corporation") unless otherwise agreed between the corporation and the Company shall apply and have effect (that is to say) :— For protection of corporation of Pwllheli.

- (1) The Company shall not enter upon take or use any portion of the lands known as Y Maes and numbered on the deposited plans of Railway No. 2 by this Act authorised 38 in the borough of Pwllheli north of the red line shown on the plan "A" (hereinafter referred to as "the signed plan 'A'") signed by John Christian Lloyd on behalf of the Company and Walter Cradoc Davies on behalf of the corporation. The corporation shall if required by the Company sell and convey to the Company the lands coloured pink on the signed plan "A" and the Company shall be at liberty to reconvey such lands or any part thereof to the Holyhead and North Wales Gas and Water Corporation Limited for use by them for the manufacture and storing of gas and for other purposes in connection with their undertaking and thereupon all rights of way over the lands so reconveyed shall cease and determine :

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- (2) (A) In the event of the use of the said lands by the said gas corporation for the before-mentioned purposes causing in the opinion of an arbitrator to be appointed for the purpose by the Minister of Health such an interference with the proper and effective use and maintenance of the public slaughter-house of the corporation as to render such premises unsuitable for such use and maintenance the Company shall if required by the corporation provide at their own expense another suitable and convenient site for the public slaughter-house to be reasonably approved by the corporation equal in area to the site of the existing slaughter-house of the corporation and of the yard belonging thereto and shall erect provide and place upon the substituted site (in accordance with plans sections and particulars to be previously agreed between the Company and the corporation) a public slaughter-house together with all necessary conveniences to replace the existing slaughter-house and upon the conveyance to the corporation of such substituted site and the completion of the new slaughter-house the site and buildings of the existing slaughter-house shall vest in and become the property of the Company :

Provided that if the corporation incur any loss by reason of such interference between the date of the application by the corporation to the Minister of Health for the appointment of the arbitrator and the date when the substituted slaughter-house accommodation to be provided by the Company is made available for the corporation the Company shall make good the same to the corporation and failing agreement the amount of such loss shall be determined by arbitration as hereinafter provided :

- (B) The corporation shall be at liberty if they think fit to require the Company to erect provide and place upon the substituted site buildings and conveniences of a capacity greater than that of the existing slaughter-house and in that event the corporation shall repay to the Company the amount by which the cost exceeds

the cost which would have been incurred in erecting providing and placing buildings and other conveniences equal in capacity to that of the existing slaughter-house and premises :

- (3) Before stopping up the roads referred to in the section of this Act the marginal note of which is "Power to stop up portion of road" the Company shall provide a road 20 feet in width approximately in the position shown coloured green on the signed plan "A" to give access to the existing public slaughter-house of the corporation and to the said lands coloured pink and such road shall be constructed to the reasonable satisfaction of the corporation :
- (4) The Company shall maintain at their own expense any portion of the public roads in the borough numbered respectively 9 38 and 50 on the deposited plans of the said railway the level of which may be altered in connection with the crossing of the said roads by Railway No. 2 on the level :
- (5) Subject to the approval of the Minister of Transport the gates at the level crossing by Railway No. 2 of any public carriage road within the borough shall be kept closed across the railway except when engines or carriages passing along the railway shall have occasion to cross such roads and the gates at the level crossing of Station Road shall be in such position and of such dimensions as shall be reasonably approved by the corporation :
- (6) Wherever Railway No. 2 is constructed over any sewer or water main of the corporation the Company shall substitute for the existing sewer or water main a steel pipe of like diameter or place the same in protective cases or otherwise protect them as the engineer of the corporation shall direct under the said railway and for a distance of 10 feet on either side thereof :
- (7) The Company shall before commencing the construction of Railway No. 2 apply to Parliament and use their best endeavours to obtain the passing of an Act enabling the Company to deviate

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that railway between the points marked "A" and "B" on the plan marked "B" and signed as aforesaid along the red line shown thereon and to abandon the portion of the authorised railway between the said points :

- (8) If any difference shall arise between the corporation and the Company under this section such difference shall except as in this section otherwise expressly provided be referred to and settled by a single arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889. shall apply to any such reference to arbitration.

For protection of
Holyhead
and North
Wales Gas
and Water
Corporation
Limited.

16. For the protection of the Holyhead and North Wales Gas and Water Corporation Limited (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the gas company and the Company have effect (that is to say) :—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not acquire any greater or other part of the property of the gas company than the portion thereof (in this section referred to as "the purchasable lands") shown and hatched in red on the plan (in this section referred to as "the signed plan") signed by John Christian Lloyd on behalf of the Company and Arthur Ifan Jones on behalf of the gas company or enter upon take or use the purchasable lands or any part thereof otherwise than subject to and in accordance with the provisions of this section :

- (2) If the Company shall serve upon the gas company notice to treat for the purchase of the purchasable lands they shall as soon as practicable after such service convey to the gas company in exchange for the purchasable lands in fee simple in possession free from all incumbrances and free of charge and of all costs and expenses

the land (in this section referred to as "the substituted land") shown and coloured pink on the signed plan : A.D. 1924.
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(3) (A) As soon as practicable after the conveyance to them of the substituted land the gas company shall apply to the Board of Trade for a special order under the Gas Regulation Act 1920 authorising the gas company to manufacture and store gas and to manufacture convert and store residual products upon the substituted land ;

(B) The Company shall repay to the gas company on demand the amount of the costs charges and expenses incurred by the gas company of and incidental to the said application (whether successful or not) and the making and approval of the said order and shall from time to time pay to the gas company such sums as the gas company may reasonably require on account of such costs charges and expenses :

(4) If such powers as are referred to in subsection (3) of this section shall be conferred upon the gas company with reference to the whole of the substituted land they shall as soon as practicable after the making of the special order conferring such powers erect provide and place upon the said land in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the Company buildings works plant and apparatus for and in connection with the manufacture and storage of gas and the manufacture conversion and storage of residual products of the same capacity as the existing buildings works plant and apparatus of the gas company on the purchasable lands and shall make all such alterations of and additions to their mains pipes valves apparatus and appliances as they may reasonably deem necessary for connecting the new buildings works plant and apparatus with the buildings works plant and apparatus upon the lands of the gas company which are not to be acquired by the Company :

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- (5) In carrying out the provisions of subsection (4) of this section and as part of the works required to be executed pursuant to that subsection the gas company shall (A) remove from the substituted land all such buildings erections or structures existing thereon at the date of the conveyance to them of the said land as they shall not require to use for the purposes of their undertaking and (B) erect on the boundaries of the substituted land (except where the said land adjoins the existing property of the gas company) such walls or fences as may be reasonably required by the gas company with a gateway of a width of not less than twelve feet at or near the point marked "A" on the signed plan :
- (6) The Company shall at their own expense if so required by the gas company divert or alter or cause to be diverted or altered the sewers in or under the substituted lands to such extent and in such manner as the gas company may reasonably require and in the case of a sewer belonging to the corporation of Pwllheli to the reasonable satisfaction of that corporation for the convenient laying out erection and placing of buildings works plant and apparatus on the said lands and the gas company shall not be required to erect or place such buildings works plant or apparatus until after any such diversion or alteration of sewers as aforesaid shall have been completed :
- (7) As soon as the gas company are in a position to commence the works referred to in subsections (4) and (5) of this section the Company shall pay to the gas company before they commence the said works a sum equal to one-half of the estimated cost thereof and upon the completion of the said works the Company shall pay to the gas company a sum equal to the amount by which the actual cost thereof exceeds the said one-half of the estimated cost and shall also pay to the gas company a sum equal to the amount of all other (if any) costs charges and expenses incurred by the gas company in or

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in connection with the carrying out of the provisions of this section. Provided that the gas company shall be at liberty if they think fit to erect provide and place upon the substituted land buildings works plant and apparatus of a capacity greater than that of the existing buildings works plant and apparatus on the purchasable lands and that in that event the gas company shall themselves bear and pay the amount by which the cost of such erection provision and placing exceeds the costs which would have been incurred in erecting providing and placing buildings works plant and apparatus of a capacity equal to that of the said existing buildings works plant and apparatus :

- (8) The Company shall not enter upon take or use the purchasable lands or any part thereof or prevent or interfere in any way with the use thereof by the gas company until (A) the gas company shall have completed the erection execution and doing of all such buildings works and things as are referred to in subsections (4) and (5) of this section and the buildings works plant and apparatus referred to in the said subsection (4) are ready for use so that there shall be no interruption in the manufacture and supply of gas by the gas company and (B) the Company have paid to the gas company the whole amount of the expenses payable by the Company pursuant to subsection (7) of this section :
- (9) The gas company and their officers and employees and all persons from time to time having lawful business with the gas company shall be entitled at all times to pass with or without horses and carts lorries or vehicles of any description across the portions of the lands known as Y Maes situate on the south side of the railway to or from the gateway referred to in subsection (5) of this section from or to the public road known as Pen-rhydlyniog and the Company shall grant or procure the granting to the gas company (free of all cost to them) of all such easements and rights as may be necessary for the purposes of this subsection :

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(10) The Company shall bear and on demand repay to the gas company the costs reasonably incurred by the gas company in providing and laying (either simultaneously with or at any time after the carrying out of the provisions of subsections (4) and (5) of this section) in such position as the gas company may reasonably require a main of an internal diameter of 12 inches with any necessary apparatus in connection therewith between the point marked "B" on the signed plan and some point to be agreed between the Company and the gas company so as to connect with an existing main of the gas company in a public road and in the event of the main to be so laid as aforesaid being laid under any portion of the railway of the Company the site of such portion shall be deemed to be a street within the meaning of the Gasworks Clauses Act 1847 :

(11) Not less than one month before commencing to construct Railway No. 2 by this Act authorised across any road in which any mains pipes or apparatus of the gas company are laid or situate the Company shall deliver to the gas company notice of their intention so to commence together with plans and sections of the intended works (including any alterations proposed to be made in the line or level of any such road as aforesaid) and the Company shall not unless they give to the gas company not less than one month's notice in writing of their intention so to do accompanied by substituted plans sections and particulars construct the said railway or execute any works in connection therewith otherwise than in accordance with the plans sections and particulars delivered to the gas company as aforesaid :

(12) (A) At any time after the receipt of any such notice as is referred to in subsection (11) of this section the gas company may raise lower or otherwise alter to such extent as they may reasonably require the position of their existing mains pipes or apparatus in or under the portions of road affected by the intended works of the Company and may and shall place the portions of

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the mains pipes or apparatus situate beneath the railway and for ten feet on either side thereof in protected casings or otherwise protect the same as the gas company may reasonably require;

(B) The Company shall repay to the gas company on demand the amount of the cost reasonably incurred by the gas company in carrying out the provisions of paragraph (A) of this subsection :

(13) Notwithstanding anything contained in this Act the Company shall pay to the gas company full compensation for all damage or injury caused to buildings and works situate on the substituted lands or the adjoining lands of the gas company or to any plant mains pipes or apparatus of the gas company by the construction or working of the said railway and not arising through any neglect by the gas company to keep such buildings and other works in a reasonable state of repair and for any consequent interruption in the supply of gas by the gas company and shall indemnify the gas company from and against all claims demands proceedings damages costs charges and expenses directly or indirectly arising out of any such damage or injury as aforesaid :

(14) The Company shall from time to time on demand pay to the gas company the amount (if any) by which the cost of the maintenance repair renewal or replacement of the mains pipes or apparatus of the gas company in Station Square is increased by reason or in consequence of the exercise by the Company of the powers of this Act :

(15) If any difference shall arise between the gas company and the Company under the provisions of this section such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil

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Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

For protection of
Colonel
Owen
Lloyd Jones
Evans.

17. For the protection of Colonel Owen Lloyd Jones Evans and his sequels in estate (hereinafter referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the Company and the owner apply and have effect (that is to say) :—

Notwithstanding anything in this Act contained or shown upon the deposited plans and sections of Railway No. 3 by this Act authorised the Company shall between the respective points marked on the deposited plans of that railway 0 miles 4 furlongs and 1 mile 3 furlongs from the commencement of that railway construct the railway on the centre line coloured red on the plan signed by John Christian Lloyd on behalf of the Company and by the owner and the owner shall sell and convey to the Company such of the land of the owner as the Company may require for the purposes aforesaid on terms to be agreed or failing agreement as may be settled by arbitration under the Lands Clauses Acts.

For protection of
John
Gwenogvryn
Evans.

18. For the protection of John Gwenogvryn Evans and his sequels in estate (hereinafter referred to as "the owner") the following provisions shall unless otherwise agreed between the Company and the owner apply and have effect (that is to say) :—

Notwithstanding anything in this Act contained or shown upon the deposited plans and sections of Railway No. 4 by this Act authorised the Company shall between the respective points marked and measured on the deposited plans of that railway 2 miles 1 furlong and 2 miles 5 furlongs from the commencement of that railway construct the railway on the centre line coloured red on the plan signed by John Christian Lloyd on behalf of the Company and by the owner.

For protection of
Vaynol
Settled
Estate.

19. For the protection of the Honourable Walter Warrick Vivian Frederick Hellewell Mills and Arthur Hepburn Hastie or other the owners for the time being of the Vaynol Estate in the county of Carnarvon (all of

whom are in this section included in the expression "the owners") the following provisions shall unless otherwise agreed in writing between the Company and the owners apply and have effect (that is to say):—

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- (1) Notwithstanding anything in this Act contained or shown on the deposited plans of Railway No. 4 by this Act authorised the Company shall not construct that railway between the point marked on those plans 4 miles and 3 furlongs from the commencement of that railway and the southern boundary of the field or enclosure numbered on those plans 32 in the parish of Llangian westward of the centre line of that railway shewn and coloured red on the plan dated the 24th day of June 1924 and signed by John Christian Lloyd on behalf of the Company and Arthur Hepburn Hastie on behalf of the owners (in this section called "the signed plan") and the Company shall construct such portion of the said railway as far to the eastward of the said centre line as shall be reasonably practicable :
- (2) The said Railway No. 4 shall be constructed and maintained across the said field or enclosure so that the level of the rails shall not be higher than that shewn on the deposited sections and the Company shall place soil on the north-western slope of so much of any embankment on which such railway shall be carried as lies between the point marked 4 miles and 3 furlongs on the signed plan and the southern boundary of the said field or enclosure and sow the same with grass seed or turf the same and keep the same covered with grass to the reasonable satisfaction of the owners :
- (3) The Company shall not acquire any greater portion of the said field or enclosure west of the said centre line than is reasonably necessary for the construction and maintenance of a double line of railway through the said field or enclosure and such additional area of land between the point marked 4 miles 6 furlongs on the signed plan and the southern boundary of the said

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field or enclosure as the Company may reasonably require in connection with a station which may be provided on that railway at Abersoch :

- (4) The Company shall carry the existing footpath in the said field or enclosure across the said railway by a level crossing which shall also be available for putting stock into the severed portion (if any) of the said field on the eastern side of the railway and which shall be so constructed and maintained by the Company as to secure that such footpath where it crosses over the said railway shall be as nearly as is reasonably practicable in its present position but without necessitating the provision of a raised approach or raised approaches :
- (5) If any difference arises between the Company and the owners touching this section or anything to be done or not to be done hereunder such difference shall be referred to and determined by an arbitrator to be agreed upon between the parties or failing agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such reference :
- (6) The provisions of this section shall be in addition to and not in derogation of any other provisions of this Act or any Act incorporated therewith which enure for the benefit or protection of the owners.

For protection of
Marquis of
Bute K.T.

20. For the protection of the Most Honourable John Crichton-Stuart Marquis of Bute K.T. (hereinafter called "the marquis" which expression shall include his sequels in estate and assigns and Mountjoy Limited) the following provisions shall unless otherwise agreed between the Company and the marquis apply and have effect.

If Railway No. 5 by this Act authorised is constructed across the road numbered on the deposited plans of that railway 14 in the parish and city and county borough of Cardiff the road shall before the Company commence to construct such railway across such road be carried over the site of that railway by means of a bridge 12 feet in width such bridge to be strong enough for ordinary traffic

and the roadway thereon shall be properly formed and metalled for the full width of the bridge and the approaches thereto shall be of an inclination not greater than 1 in 8 and the Company shall for ever thereafter maintain the said bridge and approaches in an efficient state of repair.

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21. Notwithstanding anything in this Act contained or shown upon the deposited plans of Railway No. 6 by this Act authorised the Company shall not enter upon take or use any of the lands coloured red on the plan signed by Major Strang Steel the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one in the Parliament Office of the House of Lords).

For protection of Messrs. H. D. Pochin and Company Limited.

22. Subject to the provisions of this Act the Company may in the lines and according to the levels shown on the deposited plans and sections relating thereto lay down and maintain adjoining the existing line of rails an additional line of rails over the road which crosses the Company's Oswestry and Newtown Railway on the level in the parish of Forden in the rural district of Forden in the county of Montgomery near the 36½ mile post on that railway.

Power to lay additional line of rails at level crossing.

And the Company may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for that purpose.

23. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the new roads and footpaths and alterations and diversions of roads and footpaths and other works hereinafter mentioned and may stop up and discontinue the portions of roads and footpaths to be stopped up or diverted and exercise the other powers hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class

Power to make new roads and alterations of roads footpaths &c.

A.D. 1924. who may be displaced in executing the powers of this Act or any other Act relating to the Company (that is to say) :—

In the parish and urban district of Slough and in the parish of Farnham Royal in the rural district of Eton in the county of Bucks—

They may alter and divert so much of the footpath leading from Farnham Royal which joins Stoke Poges Lane at a point about 7 chains north of the Company's railway as lies between the said junction and a point about 17 chains west thereof and the footpath leading from Farnham Royal to Salt Hill between the last-mentioned point and a point about 4 chains north of its junction with the Bath Road and in connection therewith they may stop up and discontinue the footpath connecting the said footpaths between the northern fence of the Company's railway and its junction with the first-mentioned footpath;

In the parish and urban district of Wellington and in the parish of Sampford Arundel in the rural district of Wellington in the county of Somerset—

They may stop up and discontinue so much of the road known as Pinksmoor Lane which crosses the Company's Bristol and Exeter Railway on the level as lies between the south-eastern boundary of that railway and a point about $2\frac{1}{2}$ chains north-west thereof and in lieu thereof they may make a new road between a point in the road leading from Chitterwell to Sampford Arundel about 15 yards north-west of the bridge (known as Beam Bridge) carrying the said railway over the road leading from Tiverton to Wellington and the said point in Pinksmoor Lane.

For protection of Eton Rural District Council and Slough Urban District Council.

24. For the protection of the Eton Rural District Council and the Slough Urban District Council (hereinafter collectively referred to as "the councils") the following provisions shall unless otherwise agreed in writing between the Company and the councils apply and have effect (that is to say) :—

(1) The Company in carrying into effect the alteration and diversion of footpaths in the parish and

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urban district of Slough and in the parish of Farnham Royal in the rural district of Eton by this Act authorised may and shall remove the dividing wall separating the streams passing through the existing bridge under their railway at the point marked "A" on the plan signed by John Christian Lloyd on behalf of the Company and by Arthur Gladwell on behalf of the Eton Rural District Council and by Alan Bromly on behalf of the Slough Urban District Council :

- (2) The Company shall be at liberty to reduce the area of the waterway passing through the said bridge to such extent as may be necessary to afford a height of 7 feet 10 inches between the soffit of the arch forming the southern portion of the said bridge and the underside of the flooring to carry the footpath next hereinafter mentioned but so that the dimensions of the waterway as so reduced throughout the length of the existing bridge as widened and under the footbridges hereinafter referred to shall not be less than 7 feet 6 inches wide and 1 foot 9 inches deep at each side and 2 feet 6 inches deep in the centre :
- (3) The Company shall construct a footpath under the said bridge supported by a flooring 6 inches in thickness and so much of the footpath as will be situated under the arched portion of the said bridge shall be of a width of 7 feet with a headway below the existing soffit of the arch at the centre of the footpath of 7 feet 4 inches and at the sides thereof of 6 feet 1 inch and so much of the said footpath as will be situated under the northern portion of the said bridge shall be of a width of 8 feet with a headway throughout of not less than 7 feet 6 inches :
- (4) The Company shall fence the said footpath on either side where passing under the said bridge with fencing formed of posts not less than 3 feet 6 inches in height and one rail of gas or other suitable piping 1 inch in diameter and shall erect a post and wire fence not less than 4 feet 6 inches in height on any portion of

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- the diverted footpath on the northern side of the railway which may be above the level of the adjoining ground or in close proximity to any stream :
- (5) The Company shall construct the said footpath on the north side of the said bridge of a width of not less than 6 feet and shall provide suitable footbridges of a like width where the said footpath crosses any stream :
 - (6) In the event of the Company reconstructing the said bridge or any portion thereof they shall be at liberty to reduce the width thereof to 8 feet and the headway to 7 feet 6 inches throughout over the said flooring :
 - (7) The Company shall be at liberty at any time to widen the said bridge to such extent as may be necessary for the purposes of their works Provided that the widened portion thereof shall be of a width of not less than 8 feet with a headway of not less than 7 feet 6 inches throughout over the footpath :
 - (8) In the event of the Company widening the bridge they shall for the purpose of lighting the bridge in the day time provide openings in the superstructure of the said widening not exceeding in any case two in number of such dimensions and in such positions as may be reasonably practicable having regard to the Company's requirements :
 - (9) Contemporaneously with the construction by the Company of the footpath through the said bridge the Slough Urban District Council shall in continuation thereof to the reasonable satisfaction of the Eton Rural District Council and at their own expense in all things construct the footpath on the centre line shown in red on the said plan between a point about 4 chains north of Bath Road and the southern boundary of the Company's property :
 - (10) The Company shall forever maintain in good repair to the reasonable satisfaction of the councils the said footpath where carried on any structure together with the fences thereof :

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- (11) In the event of the councils requiring at any time to light the said footpath at night time where passing under the said bridge or widening thereof the Company shall grant all reasonable facilities to the councils for such purpose :
- (12) In altering and diverting the footpath leading from Farnham Royal to Stoke Poges Lane as shown upon the deposited plans the Company shall make the altered and diverted portion thereof of a width of not less than 6 feet :
- (13) The construction by the Company of the said footpaths and the works in connection therewith shall be carried out by them to the reasonable satisfaction of the councils so far as the same are situate in their respective districts :
- (14) If any difference shall arise between the Councils or either of them and the Company under this section such difference shall be referred to and settled by an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either of them after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

25. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the general purposes of their undertaking and works connected therewith and for providing increased accommodation and for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say) :—

Power to
Company to
acquire
additional
lands.

In the county of London—

Certain lands in the parish and metropolitan borough of Paddington lying on and adjoining the southern side of the Company's main line and abutting on the roads known respectively as Bishop's Road and Westbourne Terrace :

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In the county of Middlesex—

Certain lands in the parish of Norwood and urban district of Southall-Norwood forming part of the Company's creosoting works near Hayes and abutting on the Paddington branch of the Grand Junction Canal:

In the county of Gloucester—

Certain lands in the parish and city and county borough of Bristol lying on and adjoining the north-western side of the Company's Bristol and South Wales Union Railway and between points respectively about 9 chains and 39 chains north of Ashley Hill Station and in connection therewith the Company may stop up and discontinue so much of the footpath leading from the road which is carried under that railway by a bridge at the northern end of that station to Downend as lies between points respectively about 8 chains and 21 chains north of such road and in lieu thereof they may make a new footpath from such last-mentioned point to a point in the new road in course of construction adjoining the old sewage works about 9 chains north-west of the said railway;

Certain lands in the parish of Cow Honeybourne in the rural district of Pebworth lying on and adjoining both sides of the Company's Oxford Worcester and Wolverhampton Railway at and near Honeybourne Station and in connection therewith the Company may alter and divert the footpath adjoining the southern boundary of the Company's property at Honeybourne Station between points respectively about $3\frac{1}{2}$ chains and 17 chains west of its junction with Buckle Street:

In the county of Somerset—

Certain lands in the parish of Kilmersdon in the rural district of Frome lying on and adjoining the north-eastern side of the Company's Wilts Somerset and Weymouth Railway and the eastern side of the bridge carrying the road leading from Kilmersdon to Trowbridge under that railway:

In the county of Devon—

Certain lands in the parish of Teignmouth in the urban district of Teignmouth lying on and

adjoining the north-western side of the Company's South Devon Railway and extending in a north-easterly direction for a distance of about 30 chains from the bridge carrying East Cliff Walk over that railway;

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Certain lands in the parish of East Dawlish and urban district of Dawlish lying on and adjoining the north-western side of the said railway and extending in a south-westerly direction for a distance of about 30 chains from Smugglers Lane;

Certain other lands in the last-mentioned parish and urban district lying on and adjoining the north-western side of the said railway and between points respectively about 3 chains and 24 chains north of the southern end of Parson Tunnel on that railway;

Certain other lands in the said parish and urban district lying on and adjoining both sides of the said railway and between a point about 2 chains south of the northern end of Coryton Tunnel and Kennaway Tunnel on that railway;

Certain lands in the said parish and urban district and in the parish of West Dawlish in the rural district of Newton Abbot lying on and adjoining the north-western side of the said railway and extending from Riviera Terrace Dawlish to Bungalow Town Dawlish Warren;

Certain lands in the parish and county borough of Plymouth lying on and adjoining the southern side of the Company's South Devon Railway and extending from Chudleigh Road to the Company's Laira loop line;

Certain lands in the parish of Plympton St. Mary in the rural district of Plympton St. Mary lying on and adjoining both sides of the Company's South Devon Railway and extending from the bridge carrying the main road from Plymouth to Exeter over that railway near Plympton to the junction of the Company's Launceston Branch Railway with that railway:

In the county of Cornwall—

Certain lands in the parish of Kea in the rural district of Truro lying on and adjoining the south-eastern side of the Company's Falmouth Branch

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Railway and between points respectively about 14 chains and 55 chains south-west of the junction of that railway with the Company's West Cornwall Railway;

Certain lands in the parish of Perranarworthal in the rural district of East Kerrier lying on and adjoining the south-eastern side of the said Falmouth Branch Railway and extending in a north-easterly direction for a distance of about 32 chains from the bridge carrying the road leading from Trewedna Water to Perranarworthal over that railway:

In the county of Worcester—

Certain lands in the parish of St. Lawrence in the borough of Evesham lying on and adjoining the northern side of the Company's Oxford Worcester and Wolverhampton Railway and abutting on the road leading from Worcester to Evesham Station and the River Avon;

Certain lands in the parish of Malvern Link in the urban district of Malvern lying on and adjoining the western side of the Company's Worcester and Hereford Railway and between Howsell Road and Church Road:

In the county of Chester—

Certain lands in the parish and city and county borough of Chester lying on and adjoining both sides of the Company's Shrewsbury and Chester Railway and between Wood Street and Green Lane:

In the county of Monmouth—

Certain lands in the parishes of Undy Llanvihangel Roggiett and Roggiett in the rural district of Chepstow lying on and adjoining both sides of the Company's South Wales Railway and extending in a westerly direction for a distance of about 95 chains from Severn Tunnel Junction Station;

Certain lands in the parish and county borough of Newport lying on and adjoining the eastern side of the Company's South Wales Railway and the southern side of the Mendalgylf branch of the Company's Alexandra (Newport and South Wales) Railway and near the bridge carrying the last-mentioned railway over the first-mentioned railway;

Certain other lands in the said parish and county borough lying between the Monmouthshire branch of the Company's Alexandra (Newport and South Wales) Railway and the Company's Monmouthshire (Western Valleys) Railway and near the junction (known as Maesglâs Junction) of those railways: A.D. 1924.

In the county of Glamorgan—

Certain lands in the parish and city and county borough of Cardiff lying on and adjoining the eastern side of the Company's Roath Dock Branch Railway and between Splott Park and the bridge carrying the road leading to Pengam Farm over the Company's South Wales Railway;

Certain other lands in the said parish and city and county borough forming part of the foreshore of the Bristol Channel lying on the eastern side of the Company's Cardiff Railway and the southern side of Cardiff East Moors and adjoining the main sewer outfall of the Cardiff Corporation;

Certain lands in the said parish and city and county borough lying between the Company's Taff Vale Railway Sandon Street and His Majesty's prison and in connection therewith to stop up and discontinue Sandon Road. Provided that notwithstanding the stopping up and discontinuance of the said part of Sandon Road the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the said part of Sandon Road any telegraphic line of the Postmaster-General on or under the same and the Company shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of such telegraphic line and of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other position as shall be satisfactory to the Postmaster-General. The expression "telegraphic line" in this proviso has the same meaning as in the Telegraph Act 1878;

Certain lands in the parish of Gowerton in the rural district of Swansea lying on and adjoining the south-western side of the Company's South

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Wales Railway and extending in a south-easterly direction for a distance of about 29 chains from Station Road:

In the county of Pembroke—

Certain lands in the parishes of Milford and Hakin in the urban district of Milford Haven and in the parish of Hubberston in the rural district of Haverfordwest forming part of Hubberston Pill and abutting on both sides thereof and extending in a northerly direction for a distance of about 37 chains from Victoria Bridge.

For pro-
tection of
London
County
Council.

26.—(1) If and when the Company acquire the lands in the metropolitan borough of Paddington numbered on the deposited plans 16 to 33 inclusive or any part of such lands they shall at their own expense and as soon as they shall have demolished the buildings thereon add to Bishop's Road so as to increase the present width thereof along the whole frontage of the lands so acquired and abutting upon the said road the portion of the lands shown and coloured pink on the plan (in this section referred to as "the signed plan") signed in duplicate by Major Strang Steel the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) and thereupon the lands so added to the said road shall be deemed to form part of the highway of the road. Provided that nothing in this subsection shall prevent the Company from maintaining the existing structures under the lands so added to the road.

(2) The provisions of the London Building Acts 1894 to 1923 and any Act amending the same and any byelaws and regulations in force thereunder shall apply to the execution of any works on or over any lands in the administrative county of London (in this section called "the county") acquired appropriated or used by the Company under the powers of this Act and to any new buildings or additions to existing buildings erected or made on or over any such lands and the Company shall be entitled to the benefit of any special exemptions in favour of railway companies contained in the said Acts byelaws or regulations but no such exemptions shall be deemed to

apply to such part of any building as shall be used or intended to be used for other than railway purposes. A.D. 1924.

(3) Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful for the Company to encroach upon any part of the surface of any street or footway (other than Bishop's Mews) in the county or without the consent of the London County Council (in this section called "the council") to erect or maintain any building or structure (A) in the case of lands abutting on Westbourne Terrace or Bishop's Road beyond the red line shown on the signed plan other than the wall abutting on the roadway of Westbourne Terrace referred to in the section of this Act the marginal note of which is "For protection of Ecclesiastical Commissioners and Paddington Estate Trustees" and (B) in the case of the lands in the metropolitan borough of Battersea referred to in this Act beyond the general line of buildings in any street part of a street or place.

(4) If the Company under the powers of this Act permanently stop up Bishop's Mews in the metropolitan borough of Paddington they shall forthwith give notice thereof in writing to the council.

(5) The Company shall not where any house or building in the county acquired under the powers of this Act shall have been wholly or in part demolished by them leave any adjoining structures or any portion of a partly demolished structure in an unsightly condition for a longer period than is reasonably necessary.

(6) The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the lands in the county referred to in the section of this Act of which the marginal note is "Confirmation of purchase of lands by Company" fronting on any public street or public open space or upon any building or hoarding erected on such lands any placards or advertisements except such as have been approved in writing by the clerk of the council and if any such placards or advertisements be affixed or exhibited without such approval the council and their authorised officers and servants may remove the same but this provision shall not prevent the Company from exhibiting placards giving information to the public as to the business of the Company.

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For pro-
tection of
Paddington
Borough
Council.

27. For the protection of the mayor aldermen and councillors of the metropolitan borough of Paddington (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say) :—

- (1) Before commencing the construction of any works on the lands to be acquired under the provisions contained in this Act and situate in the metropolitan borough of Paddington (hereinafter referred to as "the borough") over or in any way affecting any drains or sewers under the control of the council or the construction of works under any highway vested in the council (all of which shall be deemed to be included in the expression and are hereinafter referred to as "the works") the Company shall give to the council twenty-eight days' notice in writing of their intention to commence the works and at the same time leave with the council plans sections and particulars shewing the manner in which such works will be effected and the Company shall not commence the works until the council shall have signified their approval of the same. Provided that if the council should fail to signify their approval or disapproval of the said plans sections and particulars within the said period of twenty-eight days they shall be deemed to have approved the same :
- (2) In carrying out the said works the Company shall at their own expense in all things comply with and conform to all the reasonable directions and requirements of the council :
- (3) The said works shall be carried out in all respects in accordance with the plans sections and particulars so approved and under the supervision of the surveyor to the council :
- (4) The Company shall at all times during the progress of the erection construction reconstruction or alteration of the works of the Company on the said lands comply with all reasonable requirements of the council as to

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the provision of necessary barriers hoardings and other precautions for the due protection of the public and for the lighting and watching of such barriers and hoardings. Provided that nothing in this section contained shall be deemed to impose any liability on the council for any loss or damage which may happen to or be caused by reason of any act carried out in accordance with the requirements of the council or work done under their supervision and the Company shall indemnify and save harmless the council in respect of any claims made on the council for loss or damage occasioned by reason of any act default or omission of the Company or their contractors agents servants or workmen in connection with the works :

- (5) The following provisions shall apply to buildings erected by the Company on the lands to be acquired under the provisions of this Act and situate in the borough :—

(A) The Company shall not permit the carrying on of any trade or business in any building or structure now standing on the portion of the said lands abutting on Westbourne Terrace or hereafter to be erected thereon under the powers contained in this Act save only such trade or business as may relate exclusively to the business of the Company carried on under their statutory powers ;

(B) No building erected on the said lands at the date of this Act becoming law or any portion of such building shall be suffered or allowed by the Company to fall into a derelict condition so as to become unsightly or a nuisance or annoyance to the occupiers of other premises in the immediate neighbourhood of the said lands ;

(C) In the event of the houses fronting Westbourne Terrace being demolished and the land forming the site thereof remaining unbuilt upon the Company shall erect and

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properly maintain a screen wall fronting Westbourne Terrace except where access to or egress from the property of the Company is provided by them :

- (6) The Company shall acquire all forecourts and other spaces abutting upon Bishop's Road and shown on the deposited plans as within the curtilage of the premises abutting on that road which may be acquired by the Company and the Company shall cause the same to be thrown into and become portion of the highway upon which the same abuts and the council shall at their own expense make up and pave such forecourts and spaces :
- (7) The Company shall not where any house or building shall have been wholly or in part demolished by them leave any adjoining structures in an unsightly condition for any longer period than is reasonably necessary :
- (8) No lands acquired by the Company under the powers of this Act and situate in the borough shall unless and until Parliament otherwise determines be used by the Company for the provision of running lines goods or engine sidings engine or carriage sheds turntables or any similar works nor shall the said lands be used for the receiving or delivery of milk or fish traffic or other traffic of an equally noisy or offensive nature but this provision shall not be deemed to preclude the receiving and delivery of down line fish traffic carried in parcels by passenger or parcels train :
- (9) The Company shall submit to the council plans of any entrances to or exits from Westbourne Terrace or Bishop's Road to or from the lands acquired under the powers of this Act such entrances or exits to be designed so as not to cause undue interference with other traffic using the said highways proper regard being had to the requirements of the Company and in the event of the council signifying their disapproval of such plans within fourteen days after the receipt thereof the Company shall not commence the construction of any such

entrance or exit until the plans thereof shall have been approved by the council or settled by arbitration as hereinafter appearing : A.D. 1924.
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(10) The Company shall not use or permit their employees to use the roadway of Bishop's Road or Westbourne Terrace for the storing or for the loading or unloading of vehicles in connection with their railway traffic :

(11) The Company shall not exhibit or permit to be exhibited any advertisements (including sky signs or lights used for advertising purposes) visible from any part of Westbourne Terrace on any part of the lands acquired under the powers of this Act within the borough or on any buildings erected or to be erected thereon except—

(A) railway notices in connection with the undertaking of the Company ; or

(B) on any shop premises below the level of the fascia board :

(12) From and after the expiry of notice given by the Company to the council of their intention to take over the site of Bishop's Mews the drains and sewers and apparatus in connection therewith situate in or under Bishop's Mews and any lands in the borough acquired by the Company under the powers of this Act shall vest in and belong to the Company and thereafter the council shall be relieved of any liability or responsibility in respect to any such drains sewers and apparatus :

(13) After the expiration of the notice referred to in the preceding subsection the surface paving of Bishop's Mews shall be taken up and handed over by the Company to the council who shall forthwith remove the same at their own expense and thereupon the council shall cease to have any liability or responsibility in respect of Bishop's Mews :

(14) In the event of the works interfering with or causing subsidence of any highway sewers drains or other works vested in or belonging to the council the Company shall bear and on

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demand repay to the council the reasonable expenses incurred by the council in remedying such interferences or subsidence and any loss costs and damages suffered by the council or to which they may be liable by reason thereof :

(15) The Company shall not deposit any subsoil or materials anywhere within the borough so as to cause any nuisance or obstruction to any person using the roads or footpaths within the borough :

(16) If and while the Company are possessed under the authority of this Act of any lands houses buildings or property in the borough which are assessed to any rate leviable by the council the Company shall until the works of the Company on such lands are completed and assessed or liable to be assessed in such rates make good the deficiency in the assessments for such rates by reason of such lands houses buildings or property being taken or used for the purposes of the works of the Company and such deficiency shall be computed according to the rentals or assessments of such lands houses or buildings for the said rates respectively at the time of the passing of this Act If any difference arise between the Company and the council under this subsection such difference shall be determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the Ministry of Health and the provisions of the Arbitration Act 1889 shall apply to such reference :

(17) Any difference or dispute which may arise between the council or their surveyor and the Company or their engineer under this section (otherwise than under the preceding subsection hereof) shall be referred on the application of either party after notice to the other to an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the reference.

28. For the protection of the Ecclesiastical Commissioners and of the Paddington Estate Trustees the following provisions shall unless otherwise agreed in writing between the Ecclesiastical Commissioners and the Paddington Estate Trustees on the one hand and the Company on the other hand have effect (that is to say) :—

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For protection of Ecclesiastical Commissioners and Paddington Estate Trustees.

(1) In this section the expression "the Paddington Estate Trustees" shall include George Tournay Biddulph the Honourable Thomas Henry Frederick Egerton and Arthur Henry Thistlethwayte the present trustees of the Paddington Estate or other the trustees for the time being of the said estate and their assigns and the expression "the Paddington Estate" shall include all hereditaments for the time being comprised in or subject to an indenture of lease dated the second day of July one thousand eight hundred and ninety-six and made between the Ecclesiastical Commissioners of the one part and John Cavendish Orred Walter Morshead and the said George Tournay Biddulph of the other part or in any renewal of the said lease or of which the Ecclesiastical Commissioners or the Paddington Estate Trustees may for the time being be either owners or lessees :

(2) If the Company exercise their powers under this Act to purchase and acquire any portion of the Paddington Estate they shall acquire under and in accordance with the provisions of this Act and of the enactments incorporated therewith the estate and interest of the Ecclesiastical Commissioners and the Paddington Estate Trustees respectively of and in the whole of the lands and premises coloured pink blue and brown on the plan (in this section referred to as "the signed plan") signed by Major Strang Steel the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy has been deposited in the Parliament Office of the House of Lords) :

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- (3) After the lands coloured pink blue and brown on the signed plan shall have been acquired by the Company under the powers of this Act and until they shall remove the existing buildings thereon the Company shall keep such buildings or so much thereof as shall from time to time not have been removed in such repair and condition as to conform with the covenants contained in the lease or leases under which the said buildings are now held from the Paddington Estate Trustees and shall not permit the said buildings to be occupied otherwise than in conformity with the said covenants as modified by any licence or licences in writing granted or to be granted by the Paddington Estate Trustees and the Ecclesiastical Commissioners and for the time being in force or as offices for the accommodation of the staff of the Company :
- (4) Each section of any buildings to be erected by the Company upon any part of such lands fronting on Westbourne Terrace or Bishop's Road shall be completed within two years from the date of the commencement of that section :
- (5) No lands forming part of the Paddington Estate acquired by the Company under the powers of this Act shall unless and until Parliament otherwise determines be used by the Company for the provision of running lines goods or engine sidings engine or carriage sheds turntables or any similar works nor shall the said lands be used for the receiving or delivery of milk or fish traffic or of other traffic of an equally noisy or offensive nature but this provision shall not be deemed to preclude the receiving and delivery of down line fish traffic carried in parcels by passenger or parcels train Provided that nothing in this subsection shall prejudice or affect any opposition by the Paddington Estate Trustees or the Ecclesiastical Commissioners to any application by the Company for any modification of the provisions of this subsection :
- (6) (A) The Company shall not erect or permit to be erected on any portion of the land coloured

pink on the signed plan any building having a greater height than is permissible under the provisions of the London Building Act 1894 or any Act amending the same; A.D. 1924.

- (B) Notwithstanding anything contained or implied in any grant or conveyance to the Company of the lands coloured pink blue and brown on the signed plan the owners for the time being of the Paddington Estate shall not be precluded from erecting or re-erecting upon any part of that estate any buildings of a height not exceeding the maximum height permitted under the provisions of the London Building Act 1894 or any Act amending the same :
- (7) The Company shall not use or permit to be used any room above the ground floor level in any building erected or to be erected on any part of the land coloured pink on the signed plan fronting on Westbourne Terrace or on so much of Bishop's Road as is situate within 100 feet eastward from the intersection of the centre lines of Bishop's Road and Westbourne Terrace for any purpose other than as office accommodation for the clerical or drawing staff of the Company or as respects the said portion of the frontage to Bishop's Road for the staff in connection with any shop thereon :
- (8) (A) Before or at the same time as they adapt the existing premises Nos. 152 to 165 Westbourne Terrace or any of them for use for any purpose of their undertaking other than as office accommodation for their clerical or drawing staff or erect on the site thereof or of any part thereof any new building for use for any such purposes the Company may and shall erect along the line marked red on the signed plan between the points marked "A" and "B" on that plan (extending from the junction of No. 165 Westbourne Terrace with Westbourne Bridge to the south-western corner of the westernmost building erected or to be erected in Bishop's Road) a solid panelled brick wall of a height of not less than nine feet and of a design to be previously submitted to and

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reasonably approved by the Ecclesiastical Commissioners and the Paddington Estate Trustees with not more than three openings therein of a width not exceeding twenty feet each ;

- (B) The Company shall provide at each of the said openings a solid gate or solid gates of the same height as the said wall ;
 - (c) The Company shall at all times maintain the said wall and gates in good repair and condition ;
 - (D) The said gates shall be kept closed and locked at all times when the premises referred to in this subsection are not being used for any purpose necessitating access for vehicular traffic (except for the ingress or egress of pedestrians) ;
 - (E) The Company shall not place or permit to be placed upon the outer side of the said wall or gates any notices or advertisements whatsoever other than a notice or notices indicating the gates to be used for entrance and exit respectively :
- (9) The Company shall not use or permit their employees to use the roadway of Westbourne Terrace or of Bishop's Road or the land coloured blue and brown on the signed plan for the storing of vehicles or the loading or unloading of vehicles in connection with their railway traffic :
 - (10) The Company shall not place or use on any part of the said lands coloured pink blue and brown on the signed plan any machinery or gas or other engine so as to cause any nuisance annoyance or disturbance to the Paddington Estate Trustees or the lessees or occupiers of any part of the Paddington Estate :
 - (11) The Company shall not exhibit or permit to be exhibited any notices or advertisements (including sky signs or lights used for advertising purposes) visible from any part of Westbourne Terrace on any part of the said lands coloured pink blue and brown on the signed plan or on

any buildings erected or to be erected thereon A.D. 1924.
except—

(A) railway notices in connection with the undertaking of the Company but (in the case of buildings fronting on Westbourne Terrace) only below the level of the first floor; or

(B) on any shop premises below the level of the fascia board:

(12) The Company shall not except for temporary lights during the erection of buildings on the said lands and for such lights as the Company may reasonably require for lighting their entrances or exits use any large external arc lights or flare lamps which may be an annoyance to occupiers of any part of the Paddington Estate near to such lands:

(13) The Company shall not where any house or building shall have been wholly or in part demolished by them leave any adjoining structures in an unsightly condition for any longer period than is reasonably necessary:

(14) The Company shall by thickening or otherwise to the reasonable satisfaction of the Ecclesiastical Commissioners and the Paddington Estate Trustees convert into proper and sufficient external walls all walls of houses on the Paddington Estate which shall for a period of more than six months be exposed by the operations of the Company upon the said lands:

(15) The Company shall within twelve months after the demolition of any of the existing buildings fronting on Westbourne Terrace or Bishop's Road commence to erect on so much of the site of such demolished buildings as fronts on to Westbourne Terrace or Bishop's Road new buildings of a height of not less than thirty-five feet above the pavement level of Westbourne Terrace or Bishop's Road fronting such buildings and in other respects in accordance with the provisions of this section and shall complete such new buildings with all reasonable dispatch Provided that any period during which the Company shall be prevented from carrying on

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building operations owing to strikes lock-outs or other circumstances beyond the control of the Company shall not be reckoned as part of the said period of twelve months :

- (16) So long as the existing buildings comprising Nos. 152 to 163 (inclusive) Westbourne Terrace or any of those buildings shall remain the Company shall retain and use and permit to be used as a private roadway and private footway as now existing for access to or egress from the said buildings the land coloured brown on the signed plan and shall maintain and keep in good repair and condition for such use the said roadway and footway and the said existing posts and rails separating the said land from the public roadway of Westbourne Terrace and shall once at least in every period of four years commencing from the date of the passing of this Act paint such posts and rails with two coats of good oil and white lead paint :
- (17) The Company shall not at any time either before or after the demolition of the existing buildings comprising Nos. 151 to 165 (inclusive) Westbourne Terrace erect any building structure or erection of any kind whatsoever above the pavement level fronting the said premises on any part of the land coloured brown and blue on the signed plan and shall at all times keep the said land and any buildings structures and erections for the time being thereon in good order and condition and clean and tidy and so as not to be in any way unsightly :
- (18) The purchase money payable in respect of the interest of the Paddington Estate Trustees in any part of or interest in the Paddington Estate acquired or to be acquired by the Company under this Act shall be paid by the Company into the Bank of England to the credit of the Paymaster-General for and on behalf of the Supreme Court of Judicature to an account to be entitled "In the matter of the Great Western Railway (Additional Powers) Act 1924 the account of the trustee lessees of the Paddington Estate proceeds of sale of the trustee lessees

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interest” and it shall be lawful for the said court upon the application of the Paddington Estate Trustees to order the said sum or any part thereof to be paid out to the Paddington Estate Trustees to be applied by them in or towards the discharge of any costs connected with this Act or incident to any proceedings having reference to this Act or of any incumbrances upon the Paddington Estate or in or towards laying out developing or improving any part of the Paddington Estate for building purposes or improving bringing up to date altering adding to or reconstructing any buildings either structurally or as regards interior arrangement fittings and conveniences for letting purposes or in or towards the payment of any land taxes payable by the Paddington Estate Trustees in respect of the Paddington Estate or any part thereof and the costs and expenses incidental to such taxes and the payment thereof or to or for such other purposes for the benefit of the Paddington Estate and of the interest of the Paddington Estate Trustees therein or in payment of such costs charges and expenses connected therewith as the said court shall think fit and it shall be lawful for the said court upon the application of the Paddington Estate Trustees to make any order for the investment of the said fund or any part thereof or for payment of the income thereof and any such order may be made either without the consent of any beneficiaries or with such consents as the said court may require :

- (19) The last preceding subsection is not intended to and shall not relieve the Company from bearing and paying all such costs charges and expenses as would have been payable by them if the purchase money referred to in the said subsection had been deposited in the Bank of England pursuant to the provisions of the Lands Clauses Acts and the Company shall bear and pay the same notwithstanding anything contained in the said subsection :
- (20) If any question shall arise under this section between the Company on the one hand and the

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Ecclesiastical Commissioners and the Paddington Estate Trustees or either of them on the other hand such question shall be determined by an arbitrator to be agreed upon by the parties to such question or failing such agreement to be appointed on the application of any or either of such parties by the President of the Surveyors' Institution and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply with respect to any such determination.

For protection of
Metropolitan
Water
Board.

29. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall have effect:—

(1) Whenever by reason or in consequence of the stopping up of any street or roads any mains pipes valves hydrants syphons plugs or other works (hereinafter in this section called "apparatus") of the board shall be rendered derelict or unnecessary the Company shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Company or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of—

(A) Any apparatus situate in and under the street or road so stopped up; and

(B) Any apparatus of the board connected with the property of the board and used exclusively for the purpose of the supply of water to any premises to which a supply is furnished by means of the said apparatus:

(2) In addition to the payment referred to in the last preceding subsection of this section the Company shall pay to the board their reasonable charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the board and of and incidental to any other works or things rendered necessary in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up of streets or otherwise:

- (3) If any difference shall arise under this section between the Company and the board the same shall be referred to an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to any such reference. A.D. 1924.

30. For the protection of the Metropolitan Electric Supply Company Limited (hereinafter called "the supply company") the following provisions shall unless otherwise agreed between the Company and the supply company apply and have effect (that is to say) :—

For protection of Metropolitan Electric Supply Company Limited.

Whenever by reason or in pursuance of the exercise by the Company of the powers of this Act any electric cable or other work belonging to the supply company is rendered unnecessary the Company shall pay to the supply company the cost of providing and laying an equivalent length of such cable and works and the cost of any works required for the discontinuance of any such works rendered unnecessary and the works so rendered unnecessary shall be the property of the Company and may be taken up removed and disposed of by them.

31. For the protection of the lord mayor aldermen and burgesses of the city of Bristol (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed in writing between the corporation and the Company have effect (that is to say) :—

For protection of Bristol Corporation.

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall make the new footpath to be constructed by them under the provisions of this Act at Ashley Hill in the parish and city and county borough of Bristol of a width of not less than six feet throughout and shall cover such footpath with a coating of gravel or ashes to the reasonable satisfaction of the city engineer of the said city of Bristol :

(2) The Company shall simultaneously with the construction of the said new footpath at their

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own expense and to the reasonable satisfaction of the said city engineer provide and erect—

(A) on the easterly side of the said new footpath and throughout the entire length thereof a fence consisting of upright iron railings not more than six inches apart; and

(B) on the westerly side of the said new footpath a post and wire fence :

- (3) If any difference shall arise between the corporation or the said city engineer on the one hand and the Company on the other hand under the provisions of this section such difference shall be referred to and determined by an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Surveyors Institution and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

For protection of
Lord
Hylton.

32. The Company shall upon the completion of the works for which the land belonging to Lord Hylton in the parish of Kilmersdon in the county of Somerset is acquired under the powers of this Act plant and keep planted with shrubs and bushes the eastern slope of the railway embankment adjoining or extending over the said land.

For protection of
Chester
Corporation.

33. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection and benefit of the mayor aldermen and citizens of the city and county of the city of Chester (in this section referred to as “the corporation”) shall except so far as may be otherwise agreed between the Company and the corporation apply and have effect (that is to say):—

- (1) The Company shall not enter upon take use or appropriate any lands lying within a distance of thirty feet measured from any part of the existing frontage of the premises in the city of Chester which are known as “Vernon’s Buildings” :

- (2) Nothing contained in this Act shall take away prejudice or affect any right of way which exists

at the date of the passing thereof over the road A.D. 1924.
in the city of Chester which is shown upon the
deposited plans and thereon numbered 10 in
that city :

(3) The Company shall not enter upon take or use or
in any way interfere with any portion of the
existing footpath which is situate in the enclosure
numbered 17 in the said city on the said deposited
plans or any portion of the road which lies to the
westerly side of such footpath :

(4) (A) The Company shall use their best endeavours
to restrict as far as possible the user of the level
crossing whereby their branch railway to wharves
and works adjoining the River Dee crosses the
main road from the city of Chester to Broughton
and Mold ;

(B) After the expiration of a period of two years
from the passing of this Act the Company shall
use the said level crossing only for the purpose
of traffic to and from the wharves and works
adjoining the sidings to which the said level
crossing gives access and for crippled wagons
and for the shunting and marshalling of such
traffic and wagons :

(5) (A) If the corporation (either alone or in con-
junction with any other authority) shall at any
time hereafter desire to construct a road crossing
the Shrewsbury and Chester Railway of the
Company at a point lying to the south of the
level crossing whereby the existing road known
as Green Lane crosses that railway the Company
shall free of cost grant to the corporation all
reasonable and necessary facilities for carrying
such road across the said railway by means of a
bridge ;

(B) So soon as the said bridge and the approaches
thereto shall have been constructed by the cor-
poration the Company shall pay to the corpora-
tion the sum of six thousand pounds as a con-
tribution towards the cost of constructing such
bridge and approaches over the railway of the
Company as the same exists at the passing
of this Act ;

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- (c) The Company shall in the next Bill promoted by them in Parliament seek powers to close the last-mentioned level crossing and the corporation shall not oppose the same. Provided that such level crossing shall not be closed unless and until the bridge hereinbefore referred to shall have been completed and shall be open for public traffic :
- (6) Any provision in any public or local Act or in any byelaw or in any order or scheme made under the Housing Acts 1890 to 1923 or the Town Planning Acts 1909 to 1923 or any Act amending the same respectively which exempts a railway or any property of the Company from any of the provisions of such Act byelaw order or scheme shall not apply to any building built or fitted up by the Company in the city of Chester under the powers of sections 46 and 50 of the Great Western Railway (Additional Powers) Act 1923 on the lands which the Company are authorised to acquire under this Act or to the drainage of or any land used for the purposes of any such building and nothing in this section shall exempt any such building from the provisions of any such first-mentioned Act byelaw order or scheme :
- (7) Nothing in the said sections 46 and 50 of the last-mentioned Act of 1923 shall empower the Company to afford a supply of electricity within or for use within any such building as aforesaid :
- (8) Any question arising between the Company and the corporation under the provisions of this section or as to anything done or not to be done thereunder shall be referred to and determined by the arbitration of a single arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of

34. For the protection of the Chester United Gas Company (in this section called "the gas company") the

following provisions shall unless otherwise agreed between the Company and the gas company apply and have effect (that is to say) :—

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Chester
United
Gas
Company.

- (1) The Company shall immediately prior to constructing any works on the site of the roadway numbered on the deposited plan 2 in the city of Chester take over the existing gas main laid under the said roadway and such main shall be maintained by them during such period as a supply of gas is taken through that main to the works now occupied by or reputed to be occupied by Wagon Repairs Limited (in this section called "the wagon company") numbered on the deposited plan 8 in the said city. The Company shall also provide a site for a meter at a point adjoining the junction of the said roadway with the road known as Vernon's Buildings and the gas company may remove to such site the existing gas meter in the said works or place another meter or meters thereon and after such removal the Company shall at all times afford the servants and workmen of the gas company all facilities for access to any such meter :
- (2) So long as a supply of gas is taken by the wagon company through such main the Company shall indemnify the gas company against all claims and demands made by the wagon company in respect of such supply by reason of any failure by the Company to properly maintain such main or in consequence of the use by the Company of the same for the supply of gas to the lands acquired by them under the powers of this Act :
- (3) If the Company desire that the supply of gas to the said works now occupied by the wagon company through the said main should be discontinued or if the owners or occupiers for the time being of the said works desire to take a supply of gas direct from the gas company's mains and the Company or any such owner or occupier shall give notice to the gas company accordingly the gas company shall provide a new main not exceeding four inches in internal diameter connecting the said works with the

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existing main of the gas company situate in St. Mark's Road or if the gas company are unable to obtain the necessary easements and facilities for that purpose at a cost which in the opinion of the Company is reasonable they shall in lieu thereof provide a new main of like dimensions connecting the said works with the existing main situate in Boundary Lane and on completion of such works the existing main laid under the said roadway shall become the property of the Company :

(4) All costs charges and expenses reasonably incurred by the gas company in laying down such new main and in acquiring easements or facilities therefor shall be repaid to the gas company by the Company and the Company shall free of charge grant to the gas company any right or easement necessary for the purpose of laying or maintaining any portion of such main laid under the property of the Company and the Company shall afford the gas company at all reasonable times facilities for access to any portion of such main laid on their property for the purpose of renewing cleansing or repairing the same. The said new main shall be maintained by and at the expense of the gas company :

(5) If any difference shall arise between the Company and the gas company touching this section or anything to be done or not to be done thereunder such difference shall be determined by an engineer to be appointed (unless otherwise agreed on between the parties) on the application of either party by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration shall extend and apply to the determination of such difference.

For pro-
tection of
Caldicot
Levels

35. For the protection of the Monmouthshire Commissioners of Sewers (hereinafter called "the commissioners") the following provisions shall have effect

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- (3) If any difference shall arise between the commissioners and the Company under this section such difference shall be referred to and settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either of them after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

For pro-
tection of

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—
Corporation
of Cardiff.

“ the corporation ”) the following provisions shall have effect except so far as the corporation and the Company may otherwise agree (that is to say):—

(1) In this section the word “ street ” has the same meaning as it has in the Public Health Act 1875 the expression “ water mains ” includes water conduits water mains and pipes hydrants valves meters and water apparatus and appliances belonging to the corporation and the expression “ electric mains ” includes electric mains cables wires pipes standards and other electric apparatus and appliances belonging to the corporation :

(2) The Company shall construct the bridges to carry Railway No. 5 by this Act authorised (A) over Lake Road East as intended to be diverted as in this section provided with a clear span of 50 feet and (B) over Lake Road West with a clear span of 60 feet The said bridges shall be constructed with the faces of the abutments thereof on the lines shown in red on the plan (hereinafter referred to as “ the signed plan ”) signed by the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons) The said bridges shall be constructed with brick arches with a clear height at the springing of the arches of not less than 10 feet and at a distance of 8 feet 4 inches therefrom in the case of the bridge over Lake Road East and of 10 feet therefrom in the case of the bridge over Lake Road West of not less than 16 feet and such arches shall be faced with brindled bricks :

(3) Contemporaneously with the construction of the said bridges the Company shall at the expense in all things of the corporation reconstruct the existing bridges carrying the Roath branch of the Taff Vale Railway of the Company over the said roads with like spans respectively as those of the bridges to carry Railway No. 5

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thereover and with the faces of the abutments thereof on the lines of the diversion and widening of the said roads shown in red on the signed plan Within 28 days of notice being given to the corporation by the Company of their intention to proceed with the said works the corporation shall pay to the Company half the estimated cost of carrying out such reconstruction and on the completion thereof the corporation shall pay to the Company on demand the balance of the cost of such work as certified by the engineer of the Company including an amount representing the capitalised value of the additional cost to the Company of maintaining and renewing the reconstructed bridges over and above the cost to them of maintaining and renewing the existing bridges The Company shall from time to time afford the city treasurer and controller of the corporation or any person authorised by him facilities for examining and checking all accounts relating to the cost of such work as aforesaid :

- (4) The abutments of the bridges in the last two preceding subsections of this section mentioned shall be faced with brindled bricks and the undersurfaces of the reconstructed bridges painted white :
- (5) For the purposes of the construction of the works hereinbefore referred to the corporation shall convey to the Company free of cost the lands coloured red on the signed plan and an easement over Lake Road East as intended to be diverted and shall permit the Company to construct the foundations of the said bridges under the diversions of the said roads hereinafter referred to and the Company shall convey to the corporation free of cost their rights and interests in any lands belonging to or acquired by them under the powers of this Act (other than rights of frontage) for the purpose of widening and diverting Lake Road East and Lake Road West on the lines shown in red on the signed plan :

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(6) On completion of the said bridges carrying Railway No. 5 over the said roads and of the reconstruction of the said existing bridges the corporation may and shall at their own cost in all things divert and widen Lake Road East and Lake Road West in the lines shown in red on the signed plan including all necessary fencing and gates on either side of the said roads and thereupon all rights of way over the portion of the said roads which will not form part of the diverted roads shall forthwith cease and determine. The portion of the said roadway coloured blue on the signed plan shall on completion of the diversion of Lake Road East be fenced in by the Company and vest in them :

(7) During the reconstruction of the said existing bridge over Lake Road East the Company shall be at liberty to close the road passing under the said bridge to all traffic for such period as may be reasonably necessary for the construction of the said works and the corporation shall indemnify the Company against all claims which may arise from the temporary closing of the said road :

(8) No part of the underside of the said existing bridges when reconstructed shall be lower than 2 feet 9 inches below the present surface of the rails over the site of such bridges and the abutments of such bridges shall be carried down to such depth as will permit roads being constructed under such bridges with a minimum headway of 16 feet and the abutments of the bridges carrying Railway No. 5 over the diverted roads shall be carried down to a depth of not more than 6 inches above the level of the abutments of the said existing bridges when reconstructed. The bridge to carry Railway No. 5 across Roath Brook which brook is numbered 6 on the deposited plans in the said city shall have a clear span and headway of not less than that of the adjacent bridge under the Roath branch of the Taff Vale Railway of the Company :

(9) The Company shall not acquire any greater area of the land forming part of Roath Park than that coloured green on the signed plan :

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(10) The Company shall at their own expense and to the reasonable satisfaction of the corporation within twelve months after the opening of the said Railway No. 5 for traffic plant and keep planted the slope of the northernmost embankment thereof between Lake Road East and Lake Road West as diverted with shrubs and bushes :

(11) In the event of the Company acquiring any portion of the roadway or footpath hatched red on the signed plan they shall before fencing such portion at their own expense and to the reasonable satisfaction of the corporation divert the said roadway or footpath along the north-eastern boundary of the land acquired by the Company with a width equal to that of the existing roadway or footpath and shall to the like satisfaction reconstruct and re-erect in a good and workmanlike manner and in such positions as the corporation may require any buildings plant or apparatus interfered with or situate on any portion of the lands coloured green on the signed plan which may be acquired by the Company :

(12) In the event of the Company requiring to provide road access for the accommodation of the occupier of Fair Oak Farm between such farm and Lake Road East as diverted the corporation shall at their own expense level and make up and thereafter maintain the portion of Lake Road East between the points "A" and "B" on the signed plan for the purposes of such road access :

(13) The Company shall pay to the corporation two-thirds of the cost incurred by the corporation in constructing between the points marked "C" and "D" on the signed plan a new brick sewer marked "Brick Sewer" 3 feet 3 inches in height and 2 feet in width in substitution for the sewer marked "12" Pipe Sewer" thereon which is to be abandoned and on completion of the said new sewer the existing sewers under Lake Road East between the points marked "C" and "D" on the signed plan shall so far as they are situate on

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the property to be vested in the Company be abandoned and the corporation shall at their own expense make any necessary provision for dealing with the drainage of Fair Oak Farm :

- (14) The Company shall bear any costs incurred in strengthening or securing so far as may be necessary from all damage which may be occasioned by reason of the construction of any of the works thereover under the powers of this Act the Roath main outfall sewer of the corporation passing through the field or enclosure numbered 13 in the said city on the deposited plans relating to "Lands at Pengam (Cardiff)" and the Cardiff outfall sewer of the corporation passing through the enclosure numbered 2 in the said city on the deposited plans relating to "Lands at Cardiff East Moors" and shall for ever uphold and maintain such strengthening or securing works in good and efficient repair to the reasonable satisfaction of the corporation. The Company shall allow the corporation their officers agents workmen and contractors with materials to have free access at all reasonable times to any part of the said sewers so strengthened or secured :
- (15) The Company shall from time to time at their own cost to the reasonable satisfaction of the corporation immediately after notice in writing by the corporation so to do culvert any part or parts of the cutway numbered 1 in the said city on the deposited plan relating to "Lands at Cardiff East Moors" and leading from the said Cardiff main outfall sewer to low water which the corporation shall reasonably consider necessary to be culverted in consequence of any works of the Company such culvert to have an available area not less than that of the culvert of which it is an extension and to be provided with a valve chamber or valve chambers (not exceeding two in number) fitted complete to the satisfaction of the corporation in such position or positions as the corporation shall require and also on the like notice from time to time clear any part or parts of the cutway not culverted which shall be affected by any works of the Company and the

Company shall allow the corporation their officers agents workmen and contractors with materials to have free access at all reasonable times to any part of the said culvert and cutway : A.D. 1924.

- (16) The bridge carrying the deviation and widening of the Roath Dock Branch Railway of the Company over South Park Road shall have throughout a clear span of 50 feet measured on the square and a minimum headway of not less than 16 feet above the present surface of the roadway. The abutments of the said bridge shall have a dado of Staffordshire blue bricks to a height of 4 feet 6 inches above the level of the adjoining roadway or footpath and above such height shall be faced with best quality white glazed bricks and the under surface of the said bridge shall be painted white. The Company shall at all times repay to the corporation any extra cost incurred by them in lighting the road under the said bridge and under the other bridges of the Company crossing the said road which shall in the reasonable opinion of the corporation be necessary during daylight hours in consequence of the works of the Company. Such part of subsection (24) of section 6 of the *Great Western Railway (Additional Powers) Act 1896* as imposes on the corporation a liability to contribute to the cost of constructing any extension of the bridge therein referred to and of bearing the cost of maintaining the extended portion of the said bridge is hereby repealed :

- (17) The bridges referred to in this section shall be constructed and maintained in such a manner as to prevent as far as reasonably practicable the dripping of water therefrom on to any part of the roadway or footway thereunder and each such bridge shall have on either side of it a substantial parapet or close screen not less than 4 feet 6 inches in height above the level of the rails and the Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of such bridge parapet or screen any placard or advertisement other than placards

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or advertisements relating solely to the business of the Company and if any such placard or advertisement other than as aforesaid be so affixed or exhibited the corporation may cause the same to be removed :

(18) Any relaying alteration or diversion of any existing or the substitution of any new for any existing water main electric main or sewer executed under or rendered necessary by the exercise of the powers of this Act may be effected by the corporation at the reasonable cost of the Company and any new or additional water main electric main or sewer and any increased length of any existing water main electric main or sewer so rendered necessary shall be provided by the corporation at the reasonable cost of the Company. Provided also that nothing herein contained shall empower the corporation to execute or construct any works which when constructed will form part of the railway or undertaking of the Company :

(19) Every such relaying alteration diversion and substitution effected by the corporation shall be done to the reasonable satisfaction of the engineer of the Company :

(20) All works executed by the Company under the powers of this Act in any way affecting the said Roath Park or any lands buildings streets sewers water mains or electric mains which are the property of the corporation shall be executed by and at the cost of the Company or if the corporation so elect by them at the said cost and if executed by the Company the same shall be carried out under the superintendence if such be given and to the reasonable satisfaction of the corporation in accordance with plans and sections supplied for the use of the corporation and reasonably approved of by them before the commencement of the work. Provided that if the corporation fail for a period of 28 days after the submission of the said plans and sections to express in writing their disapproval thereof or their requirements in relation thereto the corporation shall be deemed

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to have approved thereof The corporation shall be at liberty to employ in connection with such works as aforesaid which may be carried out by the Company any watchmen or inspectors who may be reasonably required and the Company shall reimburse the corporation the reasonable cost incurred by them in so doing :

(21) If any water main or electric main of the corporation be rendered unnecessary by reason of the pulling down of the buildings supplied thereby under the powers of this Act or the stopping up of the street called Sandon Road the Company shall reimburse the corporation the value of such water main or electric main and the Company shall take up and hand over to the corporation on the site the materials forming the roadway and footpaths of the portion of Sandon Road so stopped up which shall be forthwith removed by and at the expense of the corporation :

(22) On the stopping up by the Company of Sandon Road by this Act authorised the part of that road situate between the lines respectively marked " A B " and " C D " on the plan signed by John Christian Lloyd on behalf of the Company and Thomas Peirson Frank on behalf of the corporation shall vest in the Company and the remaining parts coloured blue on the said plan shall vest in the Commissioners of His Majesty's Prisons freed from all public rights of way and the Company shall pay to the corporation the sum of two hundred and fifty pounds :

(23) The Company and the corporation may enter into and carry into effect agreements for and with respect to the variation and mode of execution of any works to be done by the Company for the protection of the corporation and for the execution by the corporation of any such works and the acquisition of land therefor and the Company and the corporation or either of them may enter into and carry into effect agreements with any person having any estate or interest in any land for the purpose of giving effect to any of the provisions of this section :

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- (24) The corporation may (in addition to any moneys they now are authorised to borrow) borrow at interest on the security of the borough fund and consolidated rate of the city for the purposes of this section (being purposes to which capital is properly applicable and not otherwise) such sum or sums as the Minister of Health may sanction, and in calculating the sum the corporation may borrow under any other enactment any sums they may borrow under this section shall not be reckoned and the powers of the corporation as to borrowing and reborrowing under this section shall not be restricted by any of the provisions of the Municipal Corporations Acts or of the Public Health Act 1875 or of the Local Government Act 1888 :
- (25) The provisions of Part XII. (Finance) of the Cardiff Corporation Act 1920 as far as the same are applicable for the purposes shall subject to the provisions of this subsection extend and apply mutatis mutandis to and in relation to the borrowing reborrowing and repayment of any moneys borrowed for the purposes of this section. Provided that the period within which the said moneys shall be repaid shall be such as may be sanctioned by the Minister of Health not exceeding sixty years from the date of the borrowing thereof and that the date of the first payment by instalments or into a sinking fund shall be the first day of January after such borrowing :
- (26) The provisions of this section shall not extend or apply to any sewer drain water or electric main laid down by the corporation under or over or along the property of the Company under the provisions of any agreement between the Company or their predecessors in title and the corporation where the provisions of this section are inconsistent with the provisions of the agreement in which case the provisions of the agreement shall apply :
- (27) If any difference arise between the Company and the corporation touching anything to be done or not to be done or any moneys to be paid under

the provisions of this section such difference shall be settled by arbitration by an engineer appointed (unless otherwise agreed upon) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889 :

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- (28) The corporation if they think fit may at any time resolve to contribute the whole or a portion of any such expenses incurred by them as are referred to in subsection (2) of the section of this Act of which the marginal note is "As to private street expenses in certain cases" and may pay the same out of the consolidated rate.

37. The Company shall when proceeding with the construction proposed in Sandon Road carry out such works and at such time as may be reasonably required by His Majesty's Prison Commissioners to safeguard the security of the prison and to prevent it from being overlooked from the Company's property and also during the period when such construction is proceeding shall take such precautions as may be reasonably required by His Majesty's Prison Commissioners to prevent trafficking and communication with those in custody in the prison.

For protection of
H.M. Prison
Commissioners.

38. For the protection of the Cardiff Gas Light and Coke Company (in this section called "the gas company") the following provisions shall unless otherwise agreed in writing between the Company and the gas company apply and have effect (that is to say) :—

For protection of
Cardiff
Gas Light
and Coke
Company.

- (1) At least twenty-eight days before commencing any works by this Act authorised affecting any mains pipes syphons tubes fittings or other apparatus (hereinafter together called "apparatus") of the gas company the Company shall deliver to the gas company plans and sections and a description of the works so proposed to be executed describing the proposed manner of executing the same and (except in the case of emergency) a notice stating the date when it is proposed to commence such works :
- (2) If it should appear to the gas company that such work will endanger or render useless any of their apparatus or impede the supply of gas the gas

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company may give notice to the Company to raise lower or otherwise alter the position of such apparatus or to substitute temporarily or otherwise other apparatus or to lay additional new apparatus to connect up any apparatus or any part thereof rendered useless or partially useless by any works of the Company in such manner as may be considered necessary and to lay or place under or over any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance shall be settled as hereinafter provided and all such works shall be done and executed by and at the expense of the Company but to the reasonable satisfaction and under the superintendence if such be given of the engineer of the gas company Provided that if the gas company by notice in writing to the Company within fourteen days after the receipt by them of notice of the intended commencement by the Company of any such works affecting the said apparatus so require the gas company may by their own engineer or workmen do and execute such works so far as they interfere with or directly affect the apparatus of the gas company and the Company shall on completion thereof pay to the gas company the reasonable expenses incurred by them in the execution thereof:

- (3) In the event of such plans sections and description so delivered to the gas company as aforesaid not being objected to within fourteen days from the receipt thereof they shall be deemed to have been approved by the gas company:
- (4) The gas company may employ such watchmen as may be necessary to watch the works whereby any apparatus belonging to them will be interfered with or affected during their construction repair or renewal and the reasonable wages of such watchmen shall be borne by the Company and be paid by them to the gas company:
- (5) If the Company for any of the purposes of this Act take or render useless to the gas company

any apparatus belonging to the gas company within the limits shown on the deposited plans they shall pay to the gas company the value of such apparatus and such apparatus shall thereupon become the property of the Company : A.D. 1924.
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(6) If by reason of the execution of any of the powers of this Act the gas company shall necessarily incur any cost in altering repairing renewing or removing any of their existing apparatus the Company shall repay to the gas company such reasonable cost :

(7) If any difference shall arise between the Company and the gas company respecting any matter under this section the same shall in default of agreement be determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall extend and apply to such arbitration.

39. Notwithstanding anything contained in this Act the Company shall not enter upon take use or appropriate any of the lands belonging to the Milford Docks Company Milford Lands Limited or the Milford and St. Brides Bay Light Railway Company which the Company are by this Act authorised to acquire in the county of Pembroke without the previous consent under the common seal of the Company owning such lands. For protection of Milford Docks Company and certain other companies.

40. For the protection of the Mynyddislwyn and Bedwellty Urban District Councils (in this section called "the councils") the following provisions shall unless otherwise agreed between the councils and the Company have effect (that is to say) :— For protection of Mynyddislwyn and Bedwellty Urban District Councils.

(1) If the councils shall cause to be forthwith conveyed to the Company free of cost such portion of the adjacent public road as may be reasonably necessary for the construction of the station hereinafter mentioned which the councils are hereby authorised to convey the Company shall as soon as practicable and in any event before the 1st day of April 1926 construct and open at a position near the brewery at Fleur-de-Lys a

A.D. 1924.
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proper and convenient station for the use of passengers and shall provide a reasonable train service to and from such station :

- (2) The Company shall within six months from the passing of this Act put in hand and complete with all reasonable dispatch the work of adapting their existing railway between Oakdale and Pennar Junction for the purposes of enabling a passenger service to be worked thereover and shall provide proper and convenient halts at Oakdale Woodfield Side Pennar Junction and Treowen :
- (3) On and after the completion by the Company of the works mentioned in the preceding subsection the Company shall provide a reasonable passenger service between Oakdale and Pontypool Road over so much of their railway known as the Pennar branch as lies between Oakdale and Pennar Junction :
- (4) Within twelve months from the passing of this Act the Company shall provide a reasonable service of workmen's trains between Markham and Pennar Junction :
- (5) Subject to the provisions of section 34 of the Railways Act 1921 the fares to be charged by the Company for the conveyance of passengers between Oakdale and the other halts to be provided by the Company on the one hand and Newport via Pontypool Road on the other hand shall not be higher than the fare in operation between Newport and the station on the Sirhowy branch of the London Midland and Scottish Railway Company nearest to each of such halts respectively :
- (6) Any dispute between the Company and the councils under this section other than subsection (5) shall be determined by an arbitrator appointed by the Minister of Transport.

For protection of commissioner of police of metropolis.

41. Seven days before entering upon breaking up or otherwise interfering with any street or road in connection with the construction of any works under the powers of this Act within the area of the metropolitan police district the Company shall give notice in writing to the

commissioner of police of the metropolis and make such arrangements with the said commissioner of police as may be reasonably necessary so as to cause as little interference with the traffic in such street or road during the construction of such works as may be reasonably practicable.

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42. Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath in substitution for an existing road or footpath or portion thereof the stopping up of the existing road or footpath shall not take place until such diverted or new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified that the diverted or new road or footpath has been completed to their satisfaction and is open for public use.

Stopping up roads and footpaths in case of diversion or making of new road or footpath.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

43. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished. Provided that the Company shall make

As to private rights of way over

A.D. 1924. full compensation to all parties interested in respect of
 lands taken compul- any such rights and such compensation shall be settled
 sorily. in manner provided by the Lands Clauses Acts with
 reference to the taking of lands otherwise than by
 agreement.

Provision as to repair of new roads and footpaths. 44. The roads streets footpaths and highways to be made altered or diverted under the authority of this Act (except the stone steel or other structure of any bridge carrying the same over or under any railway of the Company which structure except where otherwise expressly provided by this Act shall be repaired and maintained by and at the expense of the Company) shall unless otherwise agreed or otherwise specially provided by this Act when completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portion or portions of the same roads streets and footpaths now devolves.

Power to make agreements as to construction of or contribution towards cost of new roads &c. 45. The Company may enter into and carry into effect agreements with the parties having the charge management or control of the roads streets footpaths or highways or any of them portions whereof shall under the provisions of this Act be stopped up with reference to the construction or contribution towards the costs of any new road street footpath or highway to be substituted therefor and with reference to any other matters relating thereto and if so agreed the Company may delegate to such parties as aforesaid the power of constructing all or any of such new roads streets footpaths or highways in which they may be interested except the stone steel or other structure of any bridge over or under any railway.

Expenses of local authorities. 46. Any expenses incurred by a local authority under and for any of the purposes of the last preceding section of this Act shall except where otherwise expressly provided be deemed to be expenses under and for the purposes of the Public Health Act 1875.

Power to deviate in construction of works. 47. The Company may in constructing the works other than the railways deviations and widening of railways and works in connection therewith by this Act authorised deviate from the lines thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of the new roads streets

and other similar works shown on the deposited sections to any extent not exceeding three feet or (if the work be situate in any town village street or land continuously built upon) two feet but not so as to increase the rate of inclination of any new road or street beyond that prescribed by this Act where such rate is steeper than the rate of inclination prescribed by the Railways Clauses Consolidation Act 1845 and where such rate of inclination is less than that so prescribed it may be increased to such prescribed rate except where otherwise expressly provided by this Act.

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48. If the railways are not completed before the first day of October one thousand nine hundred and twenty-nine then as from that date the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
completion
of railways.

49. If the Company fail within the period limited by this Act to complete the railways and open the same for public traffic they shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works.

Imposing
penalty
unless
railways
opened.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Minister of Transport that the Company were

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prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

50. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Company.

Period for
compulsory
purchase of
lands.

51. The powers of this Act for the compulsory purchase of lands by the Company shall cease on the first day of October one thousand nine hundred and twenty-seven.

Powers to
owners to
grant ease-
ments &c.

52. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege

(not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act to be executed by them in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

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53. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and twenty-three if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered buildings acquired by Company.

54. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from

A.D. 1924.

the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and

order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner : A.D. 1924.

- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

55.—(1) If and when the Company shall acquire any portion of the burial ground numbered 33A in the parish of Llanbedrog in the rural district of Lleyrn in the county of Carnarvon on the deposited plans of Railway No. 4 by this Act authorised they shall before

Removal of
human
remains.

A.D. 1924. — applying or using any part thereof for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in such portion of the said burial ground.

(2) Before proceeding to remove any such remains the Company shall publish a notice in two local newspapers circulating in the parish of Llanbedrog to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial ground may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the Pwllheli County Court who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of fifteen pounds) shall be defrayed by the Company such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Company in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section the Company may remove the remains of the deceased person and cause them to be interred in such other burial ground or cemetery in which burials may legally take place as the Company think suitable for the purpose.

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(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Company be removed and re-erected at the place of re-interment of such remains or at such place within the said parish as the registrar of the Pwllheli County Court may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Company and the Company shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the rural district of Lleyn.

56. The Company may hold use and appropriate for the purposes of their undertaking the following lands and properties which have already been acquired by them and the expenditure of money by the Company in or about the purchase or acquisition thereof or the works executed thereon is hereby sanctioned and confirmed (that is to say) :—

Confirma-
tion of
purchase of
lands by
Company.

In the county of London—

Certain lands in the parish and metropolitan borough of Hammersmith lying on and adjoining the southern side of the Company's main line and between Scrubbs Lane and Old Oak Common Lane;

Certain lands in the parish of St. Mary Battersea and metropolitan borough of Battersea adjoining the Company's South Lambeth goods depôt:

In the county of Middlesex—

Certain lands in the parish of Isleworth in the urban district of Heston and Isleworth and in the parishes of New Brentford Township and Old Brentford in the urban district of Brentford lying on and adjoining the south-western side of the Company's goods depôt at Brentford Dock:

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In the county of Bucks—

Certain lands in the parish of Langley Marish in the rural district of Eton lying between the Company's main line and the Grand Junction Canal and adjoining Hollow Hill Lane;

Certain other lands in the said parish and rural district lying on and adjoining the southern side of the Company's main line and west of and near to Langley Station:

In the county of Berks—

Certain lands in the parishes of Ruscomb and Twyford in the rural district of Wokingham lying on and adjoining the south-eastern side of the Company's main line at the north-eastern end of Twyford Station;

Certain lands in the parish and borough of Reading (formerly in the parish of Tilehurst in the rural district of Bradfield) lying on and adjoining the southern side of the Company's main line between Scour's Lane and Tilehurst Station:

In the county of Wilts—

Certain lands in the parish and borough of Swindon lying on and adjoining the north-western side of the Company's main line and the eastern side of the Company's Midland and South Western Junction Railway;

Certain lands in the parish of Wootton Bassett in the rural district of Cricklade and Wootton Bassett lying on and adjoining the southern side of the Company's main line near Lower Studley Grange Farm and west of and near to Hay Lane;

Certain lands in the parish of Stert in the rural district of Devizes lying on and adjoining the northern side of the Company's Berks and Hants Extension Railway forming part of the field or enclosure numbered 52 on the 25-inch Ordnance map (second edition 1900) of that parish;

Certain lands in the parish of Urchfont in the rural district of Devizes lying on and adjoining the southern side of the Company's Stert and Westbury Railway forming part of the enclosure numbered 52 on the 25-inch Ordnance map (second edition 1900) of that parish:

In the county of Gloucester—

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Certain lands in the parish and city and county borough of Bristol lying on and adjoining both sides of the Bristol relief line and the Bristol and North Somerset Railway of the Company at and near the junction of those railways;

Certain lands in the parish of Almondsbury in the rural district of Thornbury lying on and adjoining the south-western side of the Company's Avonmouth and Pilning Branch Railway near Pilning Station;

Certain lands in the parish of Henbury in the rural district of Thornbury lying on and adjoining both sides of the Company's Avonmouth and Pilning Branch Railway and forming the site of part of Severn Beach Station:

In the county of Somerset—

Certain lands in the parish and urban district of Frome lying on and adjoining the eastern side of the Company's Wilts Somerset and Weymouth Railway at and near Frome Station;

Certain lands in the parish and borough of Bridgwater lying on and adjoining the western side of the Company's Bristol and Exeter Railway at and near Bridgwater Station:

In the county of Devon—

Certain lands in the parishes of Exeter and St. Thomas in the county borough of Exeter lying on and adjoining both sides of the Company's Bristol and Exeter Railway at the northern end of Exeter Station;

Certain lands in the parish of Tor Moham in the borough of Torquay lying on and adjoining the western side of the Company's Dartmouth and Torbay Railway at and near Torre Station:

In the county of Cornwall—

Certain lands in the parish of St. Austell Rural in the rural district of St. Austell forming the site of part of the Company's Goonbarrow Branch Railway:

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In the county of Worcester—

Certain lands in the parish and county borough of Worcester lying on and adjoining the eastern side of the Company's Oxford Worcester and Wolverhampton Railway at and near Worcester (Shrub Hill) Station;

Certain lands in the parish of Kidderminster Foreign in the rural district of Kidderminster lying on and adjoining the southern side of the Company's Kidderminster loop line near the junction of that line with the Company's Oxford Worcester and Wolverhampton Railway;

Certain lands in the parish of Wribbenhall in the rural district of Kidderminster lying on and adjoining the north-eastern side of the Company's Severn Valley Branch Railway at and near Bewdley Station;

Certain lands in the parish and county borough of Dudley lying on and adjoining both sides of the Company's Oxford Worcester and Wolverhampton Railway at the northern end of Dudley Station:

In the county of Stafford—

Certain lands in the parish and county borough of Wolverhampton lying on and adjoining the south-western side of the Company's Oxford Worcester and Wolverhampton Railway south of and near to Cannock Road;

Certain lands in the parish and urban district of Bilston lying on and adjoining the western side of the Company's Oxford Worcester and Wolverhampton Railway and the south-western side of Wolverhampton Road;

Certain lands in the parish and urban district of Tettenhall lying on and adjoining the north-western side of the Company's Wolverhampton and Bridgnorth Railway (now in course of construction) between Henwood Road and Meadow View Terrace:

In the county of Denbigh—

Certain lands in the parish of Ruabon in the rural district of Wrexham lying on and adjoining the eastern side of the Company's Shrewsbury and Chester Railway at the northern end of Queen Street:

In the county of Salop—

A.D. 1924.

Certain lands in the parish of St. Mary in the borough of Shrewsbury lying on and adjoining both sides of the Company's Shrewsbury and Chester Railway north of and near to the Company's Coton Hill goods depôt :

In the county of Monmouth—

Certain lands in the parish of Rogerstone Hamlet in the rural district of St. Mellons lying on and adjoining the south-western side of the sidings on the Company's Monmouthshire (Western Valleys) Railway at Rogerstone Station ;

Certain lands in the parish and county borough of Newport lying on and adjoining the southern side of the Company's South Wales Railway between Somerton Road and Wharf Road :

In the county of Glamorgan—

Certain lands in the parish of Llantrisant in the rural district of Llantrisant and Llantwit Fardre lying on and adjoining the eastern side of the Company's Gilfach Branch Railway south of and near to Gilfach Station ;

Certain lands in the parish of Ynysawdre in the rural district of Penybont lying on and adjoining the north side of the Company's Ogmore Valley Railway at and near the junction of that railway with the Company's Llynvi and Ogmore Railway ;

Certain lands in the parishes of Ynysawdre and Newcastle Higher in the rural district of Penybont lying on and adjoining the western side of the Company's Llynvi Valley Railway at and near Tondu Junction ;

Certain lands in the parish of Resolven in the rural district of Neath lying on and adjoining the south-eastern side of the Company's Vale of Neath Railway near Glyn Neath Station :

In the county of Carmarthen—

Certain lands in the parish of Llanelly Urban in the borough of Llanelly lying on and adjoining the southern side of the Company's Llanelly Railway at and near the Company's locomotive depôt ;

A.D. 1924.

Certain lands in the parish of Llangunnor in the rural district of Carmarthen lying on and adjoining the eastern side of the Company's Carmarthen and Cardigan Branch Railway at and near the junction of that railway with the Company's South Wales Railway:

In the county of Pembroke—

Certain lands in the parish of Letterston in the rural district of Haverfordwest lying on and adjoining the south-western side of the Company's North Pembrokeshire and Fishguard Railway about one mile north-west of Letterston Station.

For protection of Windsor Castle &c.

57. The provisions of section 47 (For protection of Windsor Castle &c.) of the Great Western Railway (Additional Powers) Act 1923 shall extend and apply to the lands in the county of Middlesex referred to in the section of this Act of which the marginal note is "Confirmation of purchase of lands by Company" and to the houses and premises in the borough of Windsor referred to in the section of this Act of which the marginal note is "Power to Company to retain and use certain lands."

Confirming construction of deviation of certain railways.

58. The purchase of lands for and the construction by the Company of the existing deviations of the Dartmouth and Torbay Branch Railway and of the Newquay and Cornwall Junction Branch Railway of the Company hereinafter described and which are shown upon the deposited plans and sections and the expenditure of money by the Company for or in connection therewith are hereby sanctioned and confirmed and the Company may maintain work and use such deviations and the same shall for the purposes of tolls rates and charges and for all other purposes be deemed to be part of the Dartmouth and Torbay Branch Railway and the Newquay and Cornwall Junction Branch Railway of the Company respectively.

The deviations referred to in this section are:—

- (A) A deviation of the Dartmouth and Torbay Branch Railway situate wholly in the county of Devon commencing in the parish and urban district of Brixham at a point about 18 chains south of the viaduct (known as Noss Viaduct)

on that railway and terminating in the parish of Churston Ferrers in the rural district of Totnes at a point about 27 chains north of the said viaduct; A.D. 1924.
 —

- (B) A deviation of the Newquay and Cornwall Junction Branch Railway situate wholly in the parish of St. Stephens-in-Brannel in the rural district of St. Austell in the county of Cornwall commencing at a point about $18\frac{1}{2}$ chains south-east of the bridge carrying the road leading from Gonnabarn to Foxhole over the said railway and terminating at a point about 5 chains north-west of the bridge over that railway near High Street siding on that railway.

And the Company may abandon and discontinue the maintenance and use of so much of the said railways as lies between the commencement and the termination of the deviations of those railways respectively as hereinbefore described or some portion or portions thereof and may retain hold or appropriate the site and soil thereof for the purposes of the said deviations and for the general purposes of the Company or may sell or dispose of the same.

59. The periods now limited by orders made by the Minister of Transport under the Special Acts (Extension of Time) Act 1915 for the compulsory purchase of— Extension of time for compulsory purchase of lands.

- (A) Certain lands authorised to be acquired by the Great Western Railway Act 1914 other than the lands required for the works set forth in Part 1 of the Second Schedule to this Act and the lands specified in Part 2 of that Schedule;
- (B) Certain lands required for the purposes of or in connection with (1) Deviation and Widening No. 2 authorised by the Great Western Railway Act 1913 (2) the railway and diversion of foot-path authorised by the Cardiff Railway Act 1906 (3) Railways Nos. 4 and 5 authorised by the Rhymney Railway Act 1902 (4) the railway authorised by the Rhymney Railway Act 1908 (5) Railway No. 1 authorised by the Rhymney Railway Act 1911 and (6) Railway No. 1 authorised by the Alexandra (Newport and South Wales) Docks and Railway Act 1914;

A.D. 1924.

(c) Certain lands required for the construction of the works described in section 5 of the Rhondda and Swansea Bay Railway Act 1914 and the lands described in section 14 of that Act;

are hereby extended until the first day of October one thousand nine hundred and twenty-six but on that date the powers for such compulsory purchase shall cease except so far as such powers shall then have been exercised.

For protection of
Robt. B.
Byass and
Company
Limited.

60. Section 36 (For protection of Sydney Hutchinson Byass) of the Act of 1914 shall be read and have effect as if instead of subsection (6) thereof the following subsection had been inserted therein:—

“(6) On the commencement of the construction of Railway No. 8 the Company shall serve notice to treat upon the owner in respect of the offices buildings and land numbered 4 on the deposited plans for that railway in the parish and urban district of Margam (now the borough of Port Talbot and parish of Margam) and the compensation payable to the owner in respect thereof shall notwithstanding the provisions of section 106 (Compensation in case of recently altered buildings acquired by the Company) of this Act be determined by reference to the buildings on such land at the date of the service of such notice to treat. Provided that the Company shall not (without the consent of the owner) enter upon take or use the said offices buildings or lands until the expiration of six months after the service (either contemporaneously with or subsequent to the service of the notice to treat) of a demand in writing by the Company of their desire to enter thereon and before making any alteration or addition to such offices and buildings the owner shall give to the Company one calendar month's notice in writing of such his intention.”

Extension
of time for
completion
of works.

61. The periods now limited by orders made by the Minister of Transport under the Special Acts (Extension of Time) Act 1915 for the completion of—

(A) Railways Nos. 6 7 and 8 authorised by the Great Western Railway (New Railways) Act 1905 so

A.D. 1924.
—

- far as they were not abandoned by the Great Western Railway Act 1908 and the Deviations Nos. 1 and 2 authorised by the said Act of 1908;
- (B) Railway No. 6 authorised by the Great Western Railway (General Powers) Act 1909;
 - (C) Railway No. 4 authorised by the Great Western Railway Act 1911;
 - (D) Railways Nos. 1 4 5 and 7 and the junction and deviation railways authorised by the Great Western Railway Act 1912;
 - (E) The railways authorised by the Barry Railway Act 1897;
 - (F) Railways Nos. 1 and 2 authorised by the Cardiff Railway Act 1899 and the railway authorised by the Cardiff Railway Act 1906;
 - (G) The railway authorised by the Rhymney Railway Act 1895 Railways Nos. 4 and 5 authorised by the Rhymney Railway Act 1902 the railway authorised by the Rhymney Railway Act 1908 and Railways Nos. 1 and 3 authorised by the Rhymney Railway Act 1911;
 - (H) The railways (other than Railway No. 7) authorised by the Great Western Railway Act 1914;
 - (I) Railway No. 1 authorised by the Alexandra (Newport and South Wales) Docks and Railway Act 1914;

are hereby extended in respect of (A) Railway No. 8 authorised by the Great Western Railway (New Railways) Act 1905 and so much of Deviations Nos. 1 and 2 authorised by the Great Western Railway Act 1908 and of Railway No. 6 authorised by the said Act of 1905 as forms portions of the authorised railway between the Kingswinford Branch Railway and the Shrewsbury and Birmingham Railway of the Company until the eighteenth day of December one thousand nine hundred and twenty-four and in respect of (B) the remainder of the railways and works referred to in this section or portions thereof until the first day of October one thousand nine hundred and twenty-seven and the said Acts shall be read and construed as if the respective periods limited by this section for the completion of the said railways and works had been the periods limited by the said Acts for the completion thereof respectively.

A.D. 1924.

Extension
of time for
sale of cer-
tain lands.

62. The periods limited by orders made by the Minister of Transport under the Special Acts (Extension of Time) Act 1915 for the sale of certain lands referred to in section 98 of the Great Western Railway Act 1912 and of the lands acquired by the Company for the purposes of the harbour works and railways at Weymouth authorised to be abandoned by the Great Western Railway Act 1913 are hereby extended until the first day of October one thousand nine hundred and twenty-nine.

Power to
Company to
retain and
use certain
lands.

63.—(1) Notwithstanding anything to the contrary contained in section 98 of the Great Western Railway Act 1912 or in the Lands Clauses Consolidation Act 1845 the Company shall not be required to sell or dispose of the houses and premises hereinafter in this section mentioned but the Company may retain hold and use for the general purposes of their undertaking or may for such term or terms and on such conditions as they may deem expedient lease or otherwise dispose of such houses and premises.

(2) The houses and premises in this section referred to are situate in the borough of Windsor in the county of Berks and are known respectively as (A) No. 12 Duke Street (B) Nos. 10 11 12 15 16 and 17 Walton Terrace Vansittart Road (c) Nos. 15 to 18 (inclusive) Soudan Terrace St. Andrews Road (D) Nos. 41 to 44 (inclusive) Gardner Cottages Duke Street and (E) Nos. 78 to 80 (inclusive) Gardner Cottages Vansittart Road.

Sale &c. of
lands over
tunnels.

64.—(1) Where the Company have purchased or acquired or may purchase or acquire any lands or any interest in any lands under or through which the railways of the Company are or may be carried in tunnel it shall be lawful for the Company to convey or surrender those lands or any portion of those lands (whether such portion be divided horizontally or vertically from the remainder) or any interest in those lands or portion thereof for such estates for such consideration and upon and subject to such covenants terms and conditions as they may think fit or to let on lease or to otherwise dispose of those lands or portion thereof or interest therein for such terms of years and at such rents or for such other consideration and subject to such covenants conditions and stipulations as the Company shall deem expedient.

(2) Nothing in this section shall relieve the Company their successors or assigns from any covenant condition

obligation or restriction imposed by any public or local Act or by any deed or otherwise attaching to them in respect of any such lands as aforesaid. A.D. 1924.

(3) For the purposes of this section the expression "any lands or any interest in any lands" shall not be deemed to include any mines of coal ironstone slate or other minerals.

(4) The provisions of this section shall extend and apply to lands belonging to the Company jointly with any other company or companies or to any joint committee incorporated or constituted by Act of Parliament on which the Company may be represented as if such other company or companies or such joint committee had been referred to in this section in addition to or instead of the Company.

65. From and after the passing of this Act no right of way as against the Company shall be acquired by prescription or user over any road or footpath now or hereafter the property of the Company and forming an access or approach to any station or goods yard or to any dock or harbour premises of the Company nor shall a dedication to the public of any such road or footpath be presumed by reason of any user thereof by the public if and so long as the Company maintain in some conspicuous position in such road or footpath a notice stating that the same is a private road or footpath. For the purposes of this section the expression "Company" means and includes in addition to the Company any joint committee now or hereafter incorporated or constituted by Act of Parliament on which the Company may be represented and as regards any roads and footpaths now or hereafter belonging to the Company jointly with any other company or companies means and includes the Company and such other company or companies : As to rights of way over roads and footpaths.

Provided that no such notice shall be effective for the purposes of this section unless at least one month before it is first exhibited the Company give notice in writing (accompanied by a copy of this section) to the council of the borough or urban or rural district in which the road or footpath to which the notice relates is situate and in addition where it is situate in a rural district to the parish council or chairman of the parish meeting of the parish in which such road or footpath is situate

A.D. 1924. — Provided also that nothing in this section shall prejudice or affect any public right of way in existence prior to the first exhibition of any such notice.

As to private
street ex-
penses in
certain
cases

66.—(1) The Company shall be deemed not to be an owner or occupier for the purposes of section 150 of the Public Health Act 1875 or section 19 of the Public Health Acts Amendment Act 1907 in respect of any land acquired or used by the Company under or in pursuance of the powers or for the purposes of this Act (A) upon which any street as defined by the Public Health Acts and not being a highway repairable by the inhabitants at large shall wholly or partially front adjoin or abut and (B) which shall at the time of the laying out of such street be used by the Company solely as a part of their lines of railway or sidings stations or works or which is situate within the fences of such railway and shall have no direct communication with such street.

(2) The expenses incurred by any urban or rural authority under the powers of the said sections which but for this provision the Company would be liable to pay shall be repaid to the urban or rural authority as the case may be by the owners of the premises fronting adjoining or abutting on the said street other than the Company and in such proportions as shall be settled by the surveyor of the urban or rural authority as the case may be.

(3) In the event of the Company subsequently making a communication with such street they shall notwithstanding such repayment as last aforesaid pay to the urban or rural authority as the case may be the expenses which but for the foregoing provision the Company would in the first instance have been liable to pay.

(4) The urban or rural authority as the case may be shall divide among the owners for the time being other than the Company the amount so paid by the Company to the urban or rural authority as the case may be less the cost and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and conclusive.

(5) This section shall not apply to any street existing at the passing of this Act.

(6) The provisions of this section shall extend and apply to lands belonging to the Company jointly with

any other company or companies or to any joint committee incorporated or constituted by Act of Parliament on which the Company may be represented as if such other company or companies or such joint committee had been referred to in this section in addition to or instead of the Company.

A.D. 1924.
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67. The provisions of section 45 (Power to Company &c. to lease or dispose of lands) and of section 46 (Powers as to building on or over lands &c. of Company) of the Great Western Railway (Additional Powers) Act 1923 shall extend and apply to any lands acquired by the Company under the powers of this Act :

Application
of sec-
tions 45 and
46 of Great
Western
Railway
(Additional
Powers)
Act 1923.

Provided that the said section 45 shall for the purposes of this Act be read and have effect as if the expression " lands " in that section did not include any mines of coal ironstone slate or other minerals.

68. Nothing in section 46 of the Great Western Railway (Additional Powers) Act 1923 shall relieve the Company their successors or assigns from any covenant condition or restriction whether imposed by Act of Parliament deed or otherwise and attaching to the Company in respect of any lands which may be acquired by them under the powers of this Act.

Restrictions
on erection
&c. of build-
ings.

69.—(1) Nothing contained in sections 45 and 46 of the Great Western Railway (Additional Powers) Act 1923 shall relieve the Company from any covenant condition or restriction contained in any conveyance of lands to the Company or their predecessors in title by the trustees of the will of Miss Emily Charlotte Talbot late of Margam Park in the county of Glamorgan or by their predecessors in title.

For pro-
tion of
trustees of
Margam
Estate.

(2) The indenture made the tenth day of January one thousand nine hundred and twenty-two between the Port Talbot Railway and Docks Company of the one part and Sir Thomas Mansel Franklen Charles Leyshon Dillwyn Venables Llewellyn and Alfred Douglas Miller of the other part shall be read and construed as if paragraph (c) of clause 2 thereof were omitted therefrom and the said indenture shall apply and have effect accordingly The rights and privileges granted by and all other the provisions of the said indenture in reference to the water mains known as the " Cwm Brombill water mains " and to the cable therein-referred to as

A.D. 1924. — the electric power cable shall be extended so as to apply in all respects to the rights liberties privileges or easements at present enjoyed by the owners of the Margam Estate or their lessees whether by grant or licence or otherwise of bringing the said mains and cables under or over the South Wales Railway of the Company.

Substitu-
tion of index
for share-
holders'
address
book.

70.—(1) Notwithstanding anything contained in section 10 of the Companies Clauses Consolidation Act 1845 as from time to time applied to the Company or the Great Western and Great Central Railways Joint Committee the Company and such committee may substitute for the shareholders' address book provided under that section a card or other index of a type to be approved by the auditors of the Company containing the names and addresses of the several shareholders of the Company and of that committee and that section in its application to the Company and that committee shall be read and have effect accordingly. Provided that the charge made for a copy of such card or other index shall not exceed the sum of ten pounds.

(2) When such card or other index has been so substituted section 34 of the Regulation of Railways Act 1868 shall cease to apply to the Company and that committee.

(3) If the Company act in contravention of section 10 of the Companies Clauses Consolidation Act 1845 as varied by this section they shall be liable for each offence to a penalty not exceeding twenty pounds which shall be recoverable and applied in the same manner as penalties imposed by the Railways Clauses Consolidation Act 1845 are for the time being recoverable and applicable.

Power to
strike
balances for
dividend.

71.—(1) The directors of the Company may fix a date for striking the balances for dividend on the consolidated guaranteed preference and ordinary stocks of the Company not being more than thirty-seven days before the day on which the dividend is to be declared. Provided that seven days' notice of the date so fixed shall be given by advertisement in a newspaper published in London and the dividend shall be payable to the persons whose names are registered in the books of the Company on the date so fixed.

(2) No proprietors other than those whose names are registered in the books of the Company on the date so

fixed shall be entitled to attend or vote at or be deemed to be on the register of the Company for the purposes of the general meeting of the Company at which the dividend on any such stock is to be declared or any special general meeting held at any time after such balances are struck up to and including the day on which such general meeting is held. A.D. 1924.

72. For the purposes of section 19 of the Companies Clauses Consolidation Act 1845 a confirmation or testament dative granted by any court in Scotland having authority to grant the same shall have the same effect as the probate of a will or letters of administration. Proof of transmission by will &c.

73. If any money is payable by the Company to a holder of stock or a mortgage of the Company being a minor or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. In this section the expression "guardian or committee" includes persons comprised within the expression "trustee" as defined by the Trusts (Scotland) Act 1921. Receipt in case of persons not sui juris.

74. Any order or decree or official extract thereof of any court in Scotland whereby the right to transfer or call for a transfer of any stock of the Company or to receive any dividend thereon is expressed to be vested in any person shall be sufficient authority to the Company to allow the transfer of the stock or to pay the dividends in accordance with the order or decree. An official extract of any such appointment as is mentioned in section 13 of the Judicial Factors (Scotland) Act 1889 shall where any stock of the Company is specified in such official extract or in a certificate under seal by the accountant of court produced along with such extract as belonging to or forming part of the estate under the charge of the person named in the extract be deemed for the purposes of this section to be a decree whereby the right to transfer such stock is vested in the person so named. Transfer of stock on authority of order of a court.

75. The directors may by resolution authorise any chief officer of the Company to sign contracts on behalf of the Company and contracts signed in accordance with any such resolution shall have the same validity as contracts made under section 136 of the Act 5 & 6 William IV. cap. cvii. when signed on behalf of the Company by any three of the directors. Directors may authorise chief officers to sign certain contracts.

A.D. 1924.

Stone-
throwing on
railway.

76. Any person who shall unlawfully throw or cause to fall or strike at against into or upon any engine tender carriage or truck used upon or any works or apparatus upon any of the railways now or hereafter belonging or leased to or worked by the Company solely or in conjunction with any other company or companies or to or by any joint committee now or hereafter incorporated or constituted by Act of Parliament on which the Company is represented any wood stone or other matter or thing likely to cause damage or injury to persons or property shall on conviction be liable to a penalty not exceeding forty shillings and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matters referred to justices shall apply to this enactment Where the person charged under this section is a male under the age of fourteen years the court of summary jurisdiction before whom the offender is charged shall on conviction have the same powers as are conferred upon them by subsection (1) (D) of section 10 of the Summary Jurisdiction Act 1879.

Confirma-
tion of
agreement
with Lord
Tredegar
and others.

77. The agreement dated the third day of March one thousand nine hundred and twenty-two and made between Sir George Ferdinand Forestier Walker and Henry Edzell Morgan Lindsay of the first part the Right Honourable Courtenay Charles Evan Lord Tredegar of the second part the Taff Vale Railway Company of the third part and the lord mayor aldermen and citizens of the city of Cardiff of the fourth part a copy whereof is set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto and the persons entitled or to become entitled in remainder to the Tredegar Settled Estates expectant upon the death of Lord Tredegar and shall and may be carried into effect.

Power to
Company to
apply funds
to purposes
of Act.

78. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any moneys from time to time raised by them and which are not by any of the Acts or any scheme under the Railways Act 1921 or other enactment relating to the Company made applicable to any special purpose or which being so made applicable are not required for

the special purpose And the Company may for the general purposes of their undertaking and for the more efficient working of their traffic issue any shares or stocks which under the authority of any Act passed prior to the present session of Parliament or of any such scheme or enactment the Company may have created or may hereafter create but which are not or may not be required for the special purposes for which such shares or stocks respectively were authorised to be created Provided that all money raised by the issue of such shares or stocks shall be applied only to purposes to which capital is properly applicable.

A.D. 1924.

79. Sections seventy-seven to eighty-five both inclusive of the Railways Clauses Consolidation Act 1845 as amended by the Mines (Working Facilities and Support) Act 1923 shall in the case of any minerals in relation to which His Majesty is the mine owner or royalty owner and which are under the management of the Commissioners of Woods apply as if those Commissioners were the mine owners or royalty owners as the case may be and so that any compensation payable by the Company to or for the benefit of His Majesty as the mine owner or royalty owner or payable to the Company by His Majesty as such owner shall be payable to or by the Commissioners of Woods as the case may be.

Crown
minerals.

80. Except as hereinbefore expressly provided nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

81. Nothing in this Act contained shall exempt any Company upon whom powers are conferred by this

Provision
as to general

A.D. 1924. —
Railway
Acts. Act or their respective railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act.

Costs of
Act. **82.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1924.

FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY
MAY BE REQUIRED TO BE TAKEN BY THE COMPANY.

Area.	No. on deposited Plans.	Description of Property.
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RAILWAY NO. 2 (PWLLHELI AND NEVIN).

Parish of Denio and borough of Pwllheli.	3	Yard and store.
	10	Garden.
	11	Shop hotel and pavement.
	12	Shop hotel warehouse and pavement.
	13	Shop hotel warehouse and pavement.
	14	Yard and sheds.
	15	Passage and outhouse.
	16	Bakehouse.
	17	Outhouse.
	18	Roadway.
	19	Gasworks and outbuildings.
	20	Gasworks yard and meter house.
	21	Bakehouse.
	22	Garage and yard.
	23	Garage.
	39	Stable coach house passage and yard.
	40	Stable coach house passage and yard.
	55	Rough ground fowl house and cowshed.
	59	Rough ground.
	60	Spinney.
	61	Field.
	62	Field.
	63	Garden and shed.
	64	Garden and shed.
	65	Field.
	66	Field.
	67	Yard and outhouses.
	68	Stables.
	69	Rough ground.

RAILWAY NO. 3 (PWLLHELI AND NEVIN).

Parish of Llannor in the rural dis- trict of Lleyn.	26	Yard and shed.
	27	Yard and shed.
	28	Yard and shed.
	38	Garden and approach to house.
	39	Garden and approach to house.

A.D. 1924.

Area.	No. on deposited Plans.	Description of Property.
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RAILWAY NO. 3 (PWLLELI AND NEVIN)—*continued.*

Parish of Bodvean in the rural district of Lleyn.	55	Garden.
	59	Garden and shed.
	69	Field.
	78	Farmyard and water-trough.
	108	Cottage and garden.
Parish of Nevin in the rural district of Lleyn.	25	Garden.
	26	Garden and sheds.
	27	Garden.
	28	Garden and sheds.
	29	Field.
	32	Garden and shed.
	33	Garden and shed.
	34	Garden and shed.
	35	Garden and shed.

RAILWAY NO. 4 (ABERSOCH BRANCH).

Parish of Penrhos in the rural district of Lleyn.	25	Field.
	25A	Field.
	26	Approach road.
	27	Plantation.
	28	Plantation.
	29	Garden.
	31	Yard pond sheds.
	32	Sheds barn and pigstyes.
	36A	Field and occupation road.
	42	Garden and rough ground.
	44	Garden.
Parish of Llanbedrog in the rural district of Lleyn.	45	Garden.
	34	Garden and grounds footpath and streams.
	34A	Kitchen garden.
	43	Carriage drive.
	51	Garden.
	52	Kitchen garden.
	56	Bank and stream.
	57	Garden and stream.
	70	Garden and steps.
Parish of Llangian in the rural district of Lleyn.	117	Garden.
	7	Garden.
	9	Rick-yard.
	10	Yard and outbuildings.
	24	Outhouses garden rough ground and cart-track.

A.D. 1924.

Area.	No. on deposited Plans.	Description of Property.
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RAILWAY No. 5 (ROATH PARK LOOP).

Parish city and county borough of Cardiff.	4.	Part of park paths and shrubberies conservatories and sheds.
	7	Part of park paths and shrubberies
	9	Car-shed.
	10	Stable.
	11	Yard.

RAILWAY No. 6 (GUNHEATH BRANCH).

Parish of St. Austell Rural in the rural district of St. Austell.	1	Road land by side bridge over stream stream and railway sidings.
	2	Clay tank and land surrounding.
	4	Rough land and accommodation roads.

FOOTPATHS AT SLOUGH.

Parish of Farnham Royal in the rural district of Eton.	1	Watercress bed and streams.
	2	Bank.
Parish and urban district of Slough.	1	Stream.
	2	Bank.
	3	Watercress bed water pipe and streams.
	4	Rough land.
	6	Field footpaths ditch and bank.

FOOTPATH AT WESTFORD WELLINGTON.

Parish and urban district of Wellington.	2	Garden and huts.
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LANDS BETWEEN TEIGNMOUTH AND DAWLISH WARREN.

Parish of East Dawlish in the urban district of Dawlish.	5	Cliff top and rough land.
	6	Cliff and rough land.
	8	Cliff.
	9	Wood bank and path.
	10	Wood and bank.
	10A	Cliff foreshore and groin.
	12	Garden.

LANDS AT CHESTER.

Parish and city and county borough of Chester.	4	Orchard.
	5	Orchard.
	11	Brickyard kiln engine house rails and rough ground.

A.D. 1924.

Area.	No. on deposited Plans.	Description of Property.
LANDS AT SEVERN TUNNEL JUNCTION STATION.		
Parish of Roggiett	3	Orchard.
in the rural district of Chepstow.	4	Field and reen.

SECOND SCHEDULE.

REFERRED TO IN THE SECTION OF THIS ACT THE MARGINAL NOTE OF WHICH IS "EXTENSION OF TIME FOR COMPULSORY PURCHASE OF LANDS."

PART 1.

Section of
Act in
which works
described.

Description of Works.

5	Railway (No. 7).
38	{ Additional lines of rails in the counties of Monmouth Carmarthen and Glamorgan.
	{ Bridge lengthenings in the counties of Bucks Gloucester Somerset Stafford Denbigh and Carmarthen. New bridges in the parish and borough of Neath and in the parish of Neath Higher in the rural district of Neath.
	{ Bridge lengthening in the parish of Llantrisant.
39	{ Bridge widenings in the county borough of Plymouth at the south-western end of North Road Station and in the county borough of Swansea.
	{ Bridge widenings in the parishes of Llantrisant and Pendoylon.
	{ Bridge widenings in the parish of Llantrisant.
	{ Footpaths in the counties of Gloucester Cornwall Salop Monmouth and Carmarthen and in the urban districts of Gelligaer and Caerphilly and in the rural district of Swansea and in the rural district of Pontardawe.
93	{ Streets and road in the county borough of Swansea.
	{ Bridge lengthenings and widening and footpaths in the counties of Salop and Chester.

PART 2.

A.D. 1924.

Section of
Act in
which lands
described.

Description of Lands.

56	Lands in the parish of Langley Marish near the bridge carrying the road leading from Langley Marish to Middle Green over the Company's main line. Lands respectively situate in the counties of Wilts Gloucester Oxford Warwick and Salop. Lands in the parish of Bishopsworth and in the city and county borough of Bristol. Lands in the urban district of Paignton. Lands in the urban district of Ashburton. Lands in the parish of Saint Columb Major. Lands in the urban district of Newquay. Lands in the parish of Church Honeybourne. Lands in the urban district of Stourport. Lands in the city and county borough of Birmingham in the county of Stafford. Lands in the parish of Bushbury. Lands in the parish of Chirk. Lands in the parish of Saint Woollos. Lands in the parish of Peterstone Wentlooge. Lands in the urban districts of Gelligaer and Caerphilly.
38 39 and 56.	Lands in the parish of Llantrisant numbered on the deposited plans 14 22 24 to 30 (inclusive) 33 to 38 (inclusive) 40 41 43 to 48 (inclusive) 50 to 59 (inclusive) 61 64 to 71 (inclusive) 73 74 76 77 80 81 82 and 84. Lands in the parish of Pendoylan numbered on the deposited plans 1 to 9 (inclusive) 11 14 15 16 21 and 22.
56	Lands in the parish of Peterston-super-Montem. Lands in the parish of Llangonoyd Lower. Lands in the parish of Coedfrank. Lands in the county borough of Swansea. Lands in the rural district of Swansea. Lands in the urban district of Ammanford. Lands in the borough of Carmarthen.
94	Lands in the parishes of Wrockwardine and Wellington Rural and in the urban district of Wellington. Lands in the county of Chester.

A.D. 1924.

THE THIRD SCHEDULE.

THIS INDENTURE made the third day of March one thousand nine hundred and twenty-two BETWEEN Sir GEORGE FERDINAND FORESTIER WALKER of Castleton in the county of Monmouth Baronet a major in His Majesty's Army (retired) and HENRY EDZELL MORGAN LINDSAY of Ystrad Fawr Ystrad Mynach in the county of Glamorgan Esquire C.B. lieutenant colonel late Royal Engineers (hereinafter called "the trustees") of the first part The Right Honourable COURTENAY CHARLES EVAN LORD TREDEGAR (hereinafter called "Lord Tredegar") of the second part The TAFF VALE RAILWAY COMPANY (hereinafter called "the Company") of the third part and the LORD MAYOR ALDERMEN and CITIZENS of the CITY of CARDIFF (hereinafter called "the corporation") of the fourth part.

WHEREAS by an Indenture of Conveyance dated the ninth day of March one thousand eight hundred and ninety-one and made between John Aldin Moore Richard Twining William Edwards and Hall Rokeby Price of the first part Sir Edmund Antrobus and Hugh Lindsay Antrobus of the second part the said Hugh Lindsay Antrobus of the third part George John Marjoribanks of the fourth part Marion Fenella Marjoribanks of the fifth part Elizabeth Charlotte Bullock of the sixth part Sir George Ferdinand Radzivil Walker and Henry Salusbury Milman of the seventh part The Right Honourable Godfrey Charles Viscount Tredegar then Baron Tredegar and since deceased of the eighth part and the Company of the ninth part (inter alia) certain lands in the parish of Roath now in the city of Cardiff in the county of Glamorgan were conveyed to the Company and in the same indenture was contained a covenant by the Company that they the Company their successors or assigns would construct and for ever afterwards maintain (inter alia) bridges with all proper and necessary approaches at the points marked respectively "E" and "F" on the plan number 4 to the indenture now in recital being the bridges situate respectively at the points marked "A" and "D" on the plan hereto :

And whereas the Company in pursuance of their covenant contained in the hereinbefore recited indenture duly erected the said bridges with all proper and necessary approaches thereto at the points marked "E" and "F" on the said plan number 4 being the bridges respectively at the points marked "A" and "D" on the plan hereto :

And whereas the said Godfrey Charles Viscount Tredegar died on the eleventh day of March one thousand nine hundred and thirteen and Lord Tredegar is now tenant for life of the Tredegar Settled Estates which include the lands and hereditaments adjoining the said two bridges and as such tenant for life is entitled to the benefit of the said covenant by the Company contained in the hereinbefore recited indenture and the trustees are the trustees for the time being of the Tredegar Settled Estates under an indenture of settlement dated the first day of July one thousand eight hundred and ninety-six under which the said estates now stand settled :

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And whereas by an indenture made the seventh day of July one thousand nine hundred and fourteen between the corporation of the one part and the Company of the other part the corporation covenanted with the Company at their own cost and without any cost to the Company to obtain from Lord Tredegar a release of the covenant by the Company in respect of the construction and maintenance of the said two bridges and further to obtain from Lord Tredegar a licence under seal authorising the Company to take down remove and use for their own purposes the said two bridges and the materials thereof so soon as the corporation had completed their proposed Waterloo Road Bridge and to the intent that all rights of way over the said two bridges at the points " A " and " D " on the plan hereto should be extinguished and the Company covenanted with the corporation to pay them the sum of five hundred pounds on the completion of the proposed Waterloo Road Bridge :

And whereas in pursuance of the agreement contained in the hereinbefore recited indenture of the seventh day of July one thousand nine hundred and fourteen the corporation have agreed with the trustees and Lord Tredegar to construct a new bridge to be known as the Waterloo Road Bridge across the said railway of the Company in the position shown by the green colour on the plan hereto and a roadway and approaches intended to be carried over the said railway by means of the said bridge of the width of fifty feet in manner hereinafter appearing and to maintain the said bridge and roadway when so constructed in consideration of the trustees and Lord Tredegar forthwith releasing the Company from all liability or obligation to maintain the said bridges at the points marked " A " and " D " on the plan hereto :

Now this indenture witnesseth and it is hereby agreed and declared as follows :—

1. In consideration of the release by the trustees and Lord Tredegar hereinafter contained the corporation hereby covenants and agrees with the trustees their executors administrators and assigns and with Lord Tredegar and his sequels in estate and his and their assigns First That the corporation will with all convenient speed construct a new bridge to be known as the Waterloo

A.D. 1924. Road Bridge across the said railway of the Company in the position shown by green colour on the plan hereto of fifty feet in width with proper approaches to be reasonably approved by the engineer of the Tredegar Settled Estates Secondly That the corporation will construct pave channel and curb as soon as practicable after the said new bridge has been constructed so as to be ready for use contemporaneously with and by way of continuation of a new road over the site of the railway of the Cardiff Railway Company a roadway over the property of the Taff Vale Railway Company and of the width of fifty feet throughout to be carried over the said railway of the Company by means of the said bridge and approaches Thirdly That the Corporation will after the construction and making thereof maintain the structure of the said new bridge and the said roadway in good and substantial repair and condition to the reasonable satisfaction in all respects of the said engineer.

2. And the corporation do further covenant and agree with the Company that they the corporation will at all times maintain in good and effective repair and condition the said Waterloo Road Bridge in so far as it passes over or affects the railway of the Company to the reasonable satisfaction in all things of the Company's engineer.

3. For the consideration aforesaid the trustees do as trustees at the request of Lord Tredegar grant and release and Lord Tredegar in exercise of any and every power thereto him enabling and as beneficial owner doth grant release and confirm unto the Company all rights to and all the obligations and liability of the Company relating to the construction and maintenance of the said two bridges and the approaches thereto covenanted as aforesaid to be constructed and maintained by the Company at the points marked "A" and "D" on the plan hereto pursuant to the hereinbefore-recited indenture of the ninth day of March one thousand eight hundred and ninety-one to the intent that the Company shall at all times hereafter hold their said railway and land at the points marked "A" and "D" on the plan attached hereto freed from all obligations to construct and maintain the said bridges and the approaches thereto and to the intent that all rights of way or otherwise appertaining to the Tredegar Settled Estates and the trustees and the tenant for life thereof and the persons entitled in remainder thereto shall be absolutely extinguished.

4. And for the consideration aforesaid the trustees as trustees at the request of Lord Tredegar and the corporation and Lord Tredegar in exercise of every power thereto him enabling doth as beneficial owner and at the like request of the corporation hereby irrevocably license and empower the Company at any time after the erection and completion of the said Waterloo Road

Bridge by the corporation pursuant to the covenant in that behalf hereinbefore contained to take down remove and use for their own purposes including any purposes of their undertaking the said bridges respectively placed at the points "A" and "D" on the plan hereto.

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—

5. Provided always that so far as regards the remainder or reversion expectant on the life estate of Lord Tredegar in the hereditaments intended to be hereby assured and the title to and further assurance of the same after his death the statutory covenants by him implied in these presents shall not extend to the acts or defaults of any person other than and besides himself and his own heirs and persons deriving title through or under him them or any of them.

6. This indenture shall be scheduled for the confirmation and approval of Parliament and to the intent that same may be made binding upon the persons entitled or to become entitled in remainder to the Tredegar Settled Estates expectant on the death of Lord Tredegar to the first Bill which shall be promoted in Parliament either by Lord Tredegar or his successors in title or by the corporation or by the Company and upon such confirmation and approval being obtained the release and licence hereinbefore contained shall be fully operative and of effect if and so far as but for such confirmation and approval the same would not or might not be binding on Lord Tredegar or his successors in title This indenture is subject to such alterations as Parliament may think proper to make therein but if the Committee of either House on the Bill for an Act to sanction this indenture makes any material alteration in this indenture or in the Bill so far as it relates to the subject matter of this indenture it shall be competent for any party hereto to withdraw this indenture.

In witness whereof the parties of the first and second parts have hereunto set their hands and seals and the Company and the corporation have respectively caused their common seals to be hereunto affixed the day and the year first above written.

Signed sealed and delivered
by the above-named
Courtenay Charles Evan
Lord Tredegar in the
presence of

J. FOSTER STEDMAN
Tredegar Estate
Office
Newport Mon.
Estate Agent

TREDEGAR.

L.S.

[Ch. 1.]

*Great Western Railway [14 & 15 Geo. 5.]
(Additional Powers) Act, 1924.*

A.D. 1924.

Signed sealed and delivered
by the above-named
Sir George Ferdinand
Forestier Walker in the
presence of
J. FOSTER STEDMAN.

GEORGE F.
FORESTIER WALKER.

L.S.

Signed sealed and delivered
by the above-named
Henry Edzell Morgan
Lindsay in the presence
of
J. FOSTER STEDMAN.

H. E. M. LINDSAY.

L.S.

The common seal of the
Taff Vale Railway Com-
pany was hereunto
affixed in the presence of
THOS. A. WALKER
Secretary.

The Common
Seal of the
Taff Vale Railway
Company.

The common seal of the
lord mayor aldermen
and citizens of the city
of Cardiff was hereunto
affixed in the presence of
CECIL G. BROWN
Town Clerk.

The Common
Seal of the
Lord Mayor Alder-
men and Citizens
of the City of
Cardiff.

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